

The Wakf Act, 1995

Source: <https://indiankanoon.org/doc/631210/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

3407

]

Union of India - Act

The Wakf Act, 1995

UNION OF INDIA

India

The Wakf Act, 1995

Act 43 of 1995

Published in Gazette 43 on 1 January 1980

Assented to on 1 January 1980

Commenced on 1 January 1980

[This is the version of this document from 20 September 2013.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by THE WAKF (AMENDMENT) ACT, 2013 (Act 27 of 2013) on

20 September 2013

]

The Waqf Act, 1995

ACT NO. 43 OF 1995

[22nd November, 1995.]

An Act to provide for the better administration of Auqaf and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Forty-sixth Year of the Republic of India as follows:?

Chapter I

Preliminary

1.

Short title, extent and commencement.?

(1)

This Act may be called the Waqf Act, 1995.

(2)

It extends to the whole of India except the State of Jammu and Kashmir.

(3)

It shall come into force in a State on such date as the Central Government may, by notification in the Official Gazette, appoint; and different dates may be appointed for different areas within a State and for different provisions of this Act, and any reference in any provision to the commencement of this Act, shall, in relation to any State or area therein, be construed as reference to the commencement of that provision in such State or area.

2.

Application of the Act.?

Save as otherwise expressly provided under this Act, this Act shall apply to all auqaf whether created before or after the commencement of this Act:

Provided that nothing in this Act shall apply to Durgah Khawaja Saheb, Ajmer to which the Durgah Khawaja Saheb Act, 1955 (36 of 1955) applies.

3.

Definitions.?

In this Act, unless the context otherwise requires,?

(a)

?beneficiary? means a person or object for whose benefit a waqf is created and includes religious, pious and charitable objects and any other objects of public utility sanctioned by the Muslim law:

(b)

?benefit? does not include any benefit which a mutawalli is entitled to claim solely by reason of his being such mutawalli;

(c)

?Board? means a Board of Waqf established under sub-section (1), or as the case may be, under sub-section (2) of section 13 and shall include a common Waqf Board established under section 106;

(d)

?Chief Executive Officer? means the Chief Executive Officer appointed under sub-section (1) of section 23;

(e)

?Council? means the Central Waqf Council established under section 9;

(ee)

?encroacher? means any person or institution, public or private, occupying waqf property, in whole or part, without the authority of law and includes a person whose tenancy, lease or licence has expired or has been terminated by mutawalli or the Board;

(f)

?Executive Officer? means the Executive Officer appointed by the Board under sub-section (1) of section 38;

(g)

?list of auqaf? means the list of auqaf published under sub-section (2) of section 5 or contained in the register of auqaf maintained under section 37;

(h)

?member? means a member of the Board and includes the Chairperson;

(i)

?mutawalli? means any person appointed, either verbally or under any deed or instrument by which a waqf has been created, or by a competent authority, to be the mutawalli of a waqf and includes any person who is a mutawalli of a waqf by virtue of any custom or who is a naib-mutawalli, khandim, mujawar, sajjadanashin, amin or other person appointed by a mutawalli to perform the duties of a mutawalli and save as otherwise provided in this Act, any person, committee or corporation for the time being, managing or administering any waqf or waqf property:

Provided that no member of a committee or corporation shall be deemed to be a mutawalli unless such member is an office-bearer of such committee or corporation:

Provided further that the mutawalli shall be a citizen of India and shall fulfil such other qualifications as may be prescribed: Provided also that in case a waqf has specified any qualifications, such qualifications may be provided in the rules as may be made by the State Government;

(j)

?net annual income?, in relation to a waqf, means net annual income determined in accordance with the provisions of the Explanations to sub-section (1) of section 72;

(k)

?person interested in a waqf? means any person who is entitled to receive any pecuniary or other benefits from the waqf and includes?

(i)

any person who has a right to offer prayer or to perform any religious rite in a mosque, idgah, imambara, dargah, khanqah, peerkhana and karbala, maqbara, graveyard or any other religious institution connected with the waqf or to participate in any religious or charitable institution under the waqf;

(ii)

the waqif and any descendant of the waqif and the mutawalli;

(l)

?prescribed?, except in Chapter III, means prescribed by rules made by the State Governments;

(m)

?regulations? means the regulations made by the Board under this Act;

(n)

?Shia waqf? means a waqf governed by Shia Law;

(o)

?Sunni waqf? means a waqf governed by Sunni Law;

(p)

?Survey Commissioner? means the Survey Commissioner of Waqf appointed under sub-section (1) of section 4 and includes any Additional or Assistant Survey Commissioners of Auqaf under sub-section (2) of section 4;

(q)

?Tribunal?, in relation to any area, means the Tribunal constituted under sub-section (1) of section 83, having jurisdiction in relation to that area;

(r)

?waqf? means the permanent dedication by any person, of any movable or immovable property for any purpose recognised by the Muslim law as pious, religious or charitable and includes?

(i)

a waqf by user but such waqf shall not cease to be a waqf by reason only of the user having ceased irrespective of the period of such cesser;

(ii)

a Shamlat Patti, Shamlat Deh, Jumla Malkkan or by any other name entered in a revenue record;

(iii)

?grants?, including mashrat-ul-khidmat for any purpose recognised by the Muslim law as pious, religious or charitable; and

(iv)

a waqf-alal-aulad to the extent to which the property is dedicated for any purpose recognised by Muslim law as pious, religious or charitable, provided when the line of succession fails, the income of the waqf shall be spent for education, development, welfare and such other purposes as recognised by Muslim law,

and ?waqif? means any person making such dedication;

(s)

?waqf deed? means any deed or instrument by which a waqf has been created and includes any valid subsequent deed or instrument by which any of the terms of the original dedication have been varied;

(t)

?Waqf Fund? means a waqf fund formed under sub-section (1) of section 77.

Chapter II

Survey of auqaf

4.

Preliminary survey of auqaf.?

(1)

The State Government may, by notification in the Official Gazette, appoint for the State a Survey Commissioner of Auqaf and as many Additional or Assistant Survey Commissioners of Auqaf as may be necessary for the purpose of making a survey of auqaf in the State.

(1A)

Every State Government shall maintain a list of auqaf referred to in sub-section (1) and the survey of auqaf shall be completed within a period of one year from the date of commencement of the Wakf (Amendment) Act, 2013 (27 of 2013), in case such survey was not done before the commencement of the Wakf (Amendment) Act, 2013:

Provided that where no Survey Commissioner of Waqf has been appointed, a Survey Commissioner for auqaf shall be appointed within three months from the date of such commencement.

(2)

All Additional and Assistant Survey Commissioner of Auqaf shall perform their functions under this Act under the general supervision and control of the Survey Commissioner of Auqaf.

(3)

The Survey Commissioner shall, after making such inquiry as he may consider necessary, submit his report, in respect of auqaf existing at the date of the commencement of this Act in the State or any part thereof, to the State Government containing the following particulars, namely:?

(a)

the number of auqaf in the State showing the Shia auqaf and Sunni auqaf separately;

(b)

the nature and objects of each waqf;

(c)

the gross income of the property comprised in each waqf;

(d)

the amount of land revenue, cesses, rates and taxes payable in respect of each waqf;

(e)

the expenses incurred in the realisation of the income and the pay or other remuneration of the mutawalli of each waqf; and

(f)

such other particulars relating to each waqf as may be prescribed.

(4)

The Survey Commissioner shall, while making any inquiry, have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (5 of 1908) in respect of the following matters, namely:?

(a)

summoning and examining any witness;

(b)

requiring the discovery and production of any document;

(c)

requisitioning any public record from any court or office;

(d)

issuing commissions for the examination of any witness or accounts;

(e)

making any local inspection or local investigation;

(f)

such other matters as may be prescribed.

(5)

If, during any such inquiry, any dispute arises as to whether a particular waqf is a Shia waqf or Sunni waqf and there are clear indications in the deed of waqf as to its nature, the dispute shall be decided on the basis of such deed.

(6)

The State Government may, by notification in the Official Gazette, direct the Survey Commissioner to make a second or subsequent survey of waqf properties in the State and the provisions of sub-sections (2), (3), (4) and (5) shall apply to such survey as they apply to a survey directed under sub-section (1):

Provided that no such second or subsequent survey shall be made until the expiry of a period of ten years from the date on which the report in relation to the immediately previous survey was submitted under sub-section (3):

Provided further that the waqf properties already notified shall not be reviewed again in subsequent survey except where the status of such property has been changed in accordance with the provisions of any law.

5.

Publication of list of auqaf.?

(1)

On receipt of a report under sub-section (3) of section 4, the State Government shall forward a copy of the same to the Board.

(2)

The Board shall examine the report forwarded to it under sub-section (1) and forward it back to the Government within a period of six months for publication in the Official Gazette a list of Sunni auqaf or Shia auqaf in the State, whether in existence at the commencement of this Act or coming into existence thereafter, to which the report relates, and containing such other particulars as may be prescribed.

(3)

The revenue authorities shall?

(i)

include the list of auqaf referred to in sub-section (2), while updating the land records; and

(ii)

take into consideration the list of auqaf referred to in sub-section (2), while deciding mutation in the land records.

(4)

The State Government shall maintain a record of the lists published under sub-section (2) from time to time.

6.

Disputes regarding auqaf.?

(1)

If any question arises whether a particular property specified as waqf property in the list of auqaf is waqf property or not or whether a waqf specified in such list is a Shia waqf or Sunni waqf, the Board or the mutawalli of the waqf or any person aggrieved may institute a suit in a Tribunal for the decision of the question and the decision of the Tribunal in respect of such matter shall be final:

Provided that no such suit shall be entertained by the Tribunal after the expiry of one year from the date of the publication of the list of auqaf:

Provided further that no suit shall be instituted before the Tribunal in respect of such properties notified in a second or subsequent survey pursuant to the provisions contained in sub-section (6) of section 4.

(2)

Notwithstanding anything contained in sub-section (1), no proceeding under this Act in respect of any waqf shall be stayed by reason only of the pendency of any such suit or of any appeal or other proceeding arising out of such suit.

(3)

The Survey Commissioner shall not be made a party to any suit under sub-section (1) and no suit, prosecution or other legal proceeding shall lie against him in respect of anything which is in good faith done or intended to be done in pursuance of this Act or any rules made thereunder.

(4)

The list of auqaf shall, unless it is modified in pursuance of a decision of the Tribunal under sub-section (1), be final and conclusive.

(5)

On and from the commencement of this Act in a State, no suit or other legal proceeding shall be instituted or commenced in a court in that State in relation to any question referred to in sub-section (1).

7.

Power of Tribunal to determine disputes regarding auqaf.?

(1)

If, after the commencement of this Act, any question or dispute arises, whether a particular property specified as waqf property in a list of auqaf is waqf property or not, or whether a waqf specified in such list is a Shia waqf or a Sunni waqf, the Board or the mutawalli of the waqf, or any person aggrieved by the publication of the list of auqaf under section 5 therein, may apply to the Tribunal having jurisdiction in relation to such property, for the decision of the question and the decision of the Tribunal thereon shall be final:

Provided that?

(a)

in the case of the list of auqaf relating to any part of the State and published after the commencement of this Act no such application shall be entertained after the expiry of one year from the date of publication of the list of auqaf; and

(b)

in the case of the list of auqaf relating to any part of the State and published at any time within a period of one year immediately preceding the commencement of this Act, such an application may be entertained by Tribunal within the period of one year from such commencement:

Provided further that where any such question has been heard and finally decided by a civil court in a suit instituted before such commencement, the Tribunal shall not re-open such question.

(2)

Except where the Tribunal has no jurisdiction by reason of the provisions of sub-section (5), no proceeding under this section in respect of any waqf shall be stayed by any court, tribunal or other authority by reason only of the pendency of any suit, application or appeal or other proceeding arising out of any such suit, application, appeal or other proceeding.

(3)

The Chief Executive Officer shall not be made a party to any application under sub-section (1).

(4)

The list of auqaf and where any such list is modified in pursuance of a decision of the Tribunal under sub-section (1), the list as so modified, shall be final.

(5)

The Tribunal shall not have jurisdiction to determine any matter which is the subject-matter of any suit or proceeding instituted or commenced in a civil court under sub-section (1) of section 6, before the commencement of the Act or which is the subject-matter of any appeal from the decree passed before such commencement in any such suit or proceeding or of any application for revision or review arising out of such suit, proceeding or appeal, as the case may be.

(6)

The Tribunal shall have the powers of assessment of damages by unauthorised occupation of waqf property and to penalise such unauthorised occupants for their illegal occupation of the waqf property and to recover the damages as arrears of land revenue through the Collector:

Provided that whosoever, being a public servant, fails in his lawful duty to prevent or remove an encroachment, shall on conviction be punishable with fine which may extend to fifteen thousand rupees for each such offence.

8.

State Government to bear cost of survey.?

The total cost of making a survey including the cost of publication of the list or lists of auqaf under this Chapter shall be borne by the State Government.

Chapter III

Central waqf council

9.

Establishment and constitution of Central Waqf Council.?

(1)

The Central Government may, by notification in the Official Gazette, establish a Council to be called the Central Waqf Council, for the purpose of advising the Central Government, the State Governments and the Boards on matters concerning the working of Boards and the due administration of auqaf.

(1A)

The Council referred to in sub-section (1) shall issue directives to the Boards, on such issues and in such manner, as provided under sub-sections (4) and (5).

(2)

The Council shall consist of?

(a)

the Union Minister in-charge of waqf?ex officio Chairperson;

(b)

the following members to be appointed by the Central Government from amongst Muslims, namely:?

(i)

three persons to represent Muslim organisations having all India character and national importance;

(ii)

four persons of national eminence, one each from the fields of administration or management, financial management, engineering or architecture and medicine;

(iii)

three Members of Parliament of whom two shall be from the House of the People and one from the Council of States;

(iv)

Chairpersons of three Boards by rotation;

(v)

two persons who have been Judges of the Supreme Court or a High Court;

(vi)

one Advocate of national eminence;

(vii)

one person to represent the mutawallis of the waqf having a gross annual income of rupees five lakhs and above;

(viii)

three persons who are eminent scholars in Muslim Law:

Provided that at least two of the members appointed under sub-clauses (i) to (viii) shall be women.

(3)

The term of office of, the procedure to be followed in the discharge of their functions by, and the manner of filling casual vacancies among, members of the Council shall be such as may be, prescribed by rules made by the Central Government.

(4)

The State Government or, as the case may be, the Board, shall furnish information to the Council on the performance of Waqf Boards in the State, particularly on their financial performance, survey, maintenance of waqf deeds, revenue records, encroachment of waqf properties, annual reports and audit reports in the manner and time as may be specified by the Council and it may suo motu call for information on specific issues from the Board, if it is satisfied that there was prima facie evidence of irregularity or violation of the provisions of this Act and if the Council is satisfied that such irregularity or violation of the Act is established, it may issue such directive, as considered appropriate, which shall be complied with by the concerned Board under intimation to the concerned State Government.

(5)

Any dispute arising out of a directive issued by the Council under sub-section (4) shall be referred to a Board of Adjudication to be constituted by the Central Government, to be presided over by a retired Judge of the Supreme Court or a retired Chief Justice of a High Court and the fees and travelling and other allowances payable to the Presiding Officer shall be such as may be specified by that Government.

10.

Finance of Council.?

(1)

Every Board shall pay from its Waqf Fund annually to the Council such contribution as is equivalent to one per cent. of the aggregate of the net annual income of the auqaf in respect of which contribution is payable under sub-section (1) of section 72:

Provided that where the Board, in the case of any particular waqf has remitted under sub-section (2) of section 72 the whole of the contribution payable to it under sub-section (1) of that section, then for calculating the contribution payable

to the Council under this section the net annual income of the waqf in respect of which such remission has been granted shall not be taken into account.

(2)

All monies received by the Council under sub-section (1) and all other monies received by it as donations, benefactions and grants shall form a fund to be called the Central Waqf Fund.

(3)

Subject to any rules that may be made by the Central Government in this behalf, the Central Waqf Fund shall be under the control of the Council and may be applied for such purposes as the Council may deem fit.

11.

Accounts and audit.?

(1)

The Council shall cause to be maintained such books of account and other books in relation to its accounts in such form and in such manner as may be prescribed by rules made by the Central Government.

(2)

The accounts of the Council shall be audited and examined annually by such auditor as may be appointed by the Central Government.

(3)

The costs of the audit shall be paid from the Central Waqf Fund.

12.

Power of Central Government to make rules.?

(1)

The Central Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Chapter.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:?

(a)

the term of office of, the procedure to be followed in the discharge of their functions by, and the manner of filling casual vacancies among, the members of the Council;

(b)

control over and application of the Central Waqf Fund;

(c)

the form and manner in which accounts of the Council may be maintained.

(3)

Every rule made by the Central Government under this Chapter shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session for a total period of three days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under the rule.

Chapter IV

Establishment of boards and their functions

13.

Incorporation.?

(1)

With effect from such date as the State Government may, by notification in the Official Gazette, appoint in this behalf, there shall be established a Board of Auqaf under such name as may be specified in the notification:

Provided that in case where a Board of Waqf has not been established, as required under this sub-section, a Board of Waqf shall, without prejudice to the provisions of this Act or any other law for the time being in force, be established within six months from the date of commencement of the Wakf (Amendment) Act, 2013 (27 of 2013).

(2)

Notwithstanding anything contained in sub-section (1), if the Shia auqaf in any State constitute in number more than fifteen per cent. of all the auqaf in the State or if the income of the properties of the Shia auqaf in the State constitutes more than fifteen per cent. of the total income of properties of all the auqaf in the State, the State Government may, by notification in the Official Gazette, establish a Board of Auqaf each for Sunni auqaf and for Shia auqaf under such names as may be specified in the notification.

(2A)

Where a Board of Waqf is established under sub-section (2) of section 13, in the case of Shia waqf, the Members shall belong to the Shia Muslim and in the case of Sunni waqf, the Members shall belong to the Sunni Muslim.

(3)

The Board shall be a body corporate having perpetual succession and a common seal with power to acquire and hold property and to transfer any such property subject to such conditions and restrictions as may be prescribed and shall by the said name sue and be sued.

14.

Composition of Board.?

(1)

The Board for a State and the National Capital Territory of Delhi shall consist of?

(a)

a Chairperson;

(b)

one and not more than two members, as the State Government may think fit, to be elected from each of the electoral colleges consisting of?

(i)

Muslim Members of Parliament from the State or, as the case may be, the National Capital Territory of Delhi;

(ii)

Muslim Members of the State Legislature;

(iii)

Muslim members of the Bar Council of the concerned State or Union territory:

Provided that in case there is no Muslim member of the Bar Council of a State or a Union territory, the State Government or the Union territory administration, as the case may be, may nominate any senior Muslim advocate from that State or the Union territory, and

(iv)

mutawallis of the auqaf having an annual income of rupees one lakh and above.

Explanation I.?

For the removal of doubts, it is hereby declared that the members from categories mentioned in sub-clauses (i) to (iv), shall be elected from the electoral college constituted for each category.

Explanation II.?

For the removal of doubts it is hereby declared that in case a Muslim member ceases to be a Member of Parliament from the State or National Capital Territory of Delhi as referred to in sub-clause (i) of clause (b) or ceases to be a Member of the State Legislative Assembly as required under sub-clause (ii) of clause (b), such member shall be deemed to have vacated the office of the member of the Board for the State or National Capital Territory of Delhi, as the case may be, from the date from which such member ceased to be a Member of Parliament from the State National Capital Territory of Delhi, or a Member of the State Legislative Assembly, as the case may be;

(c)

one person from amongst Muslims, who has professional experience in town planning or business management, social work, finance or revenue, agriculture and development activities, to be nominated by the State Government;

(d)

one person each from amongst Muslims, to be nominated by the State Government from recognised scholars in Shia and Sunni Islamic Theology;

(e)

one person from amongst Muslims, to be nominated by the State Government from amongst the officers of the State

Government not below the rank of Joint Secretary to the State Government;

(1A)

No Minister of the Central Government or, as the case may be, a State Government, shall be elected or nominated as a member of the Board:

Provided that in case of a Union territory, the Board shall consist of not less than five and not more than seven members to be appointed by the Central Government from categories specified under sub-clauses (i) to (iv) of clause (b) or clauses (c) to (e) in sub-section (1):

Provided further that at least two Members appointed on the Board shall be women:

Provided also that in every case where the system of mutawalli exists, there shall be one mutawalli as the member of the Board.

(2)

Election of the members specified in clause (b) of sub-section (1) shall be held in accordance with the system of proportional representation by means of a single transferable vote, in such manner as may be prescribed:

Provided that where the number of Muslim Members of Parliament, the State Legislature or the State Bar Council, as the case may be, is only one, such Muslim Member shall be declared to have been elected on the Board:

Provided further that where there are no Muslim Members in any of the categories mentioned in sub-clauses (i) to (iii) of clause (b) of sub-section (1) the ex-Muslim Members of Parliament, the State Legislature or ex-member of the State Bar Council, as the case may be, shall constitute the electoral college.

(3)

Notwithstanding anything contained in this section, where the State Government is satisfied, for reasons to be recorded in writing, that it is not reasonably practicable to constitute an electoral college for any of the categories mentioned in sub-clauses (i) to (iii) of clause (b) of sub-section (1), the State Government may nominate such persons as the members of the Board as it deems fit.

(4)

The number of elected members of the Board shall, at all times, be more than the nominated members of the Board except as provided under sub-section (3).

* * * * *

(6)

In determining the number of Shia members or Sunni members of the Board, the State Government shall have regard to the number and value of Shia auqaf and Sunni auqaf to be administered by the Board and appointment of the members shall be made, so far as may be, in accordance with such determination.

* * * * *

(8)

Whenever the Board is constituted or reconstituted, the members of the Board present at a meeting convened for the purpose shall elect one from amongst themselves as the Chairperson of the Board.

(9)

The members of the Board shall be appointed by the State Government by notification in the Official Gazette.

15.

Term of office.?

The members of the Board shall hold office for a term of five years from the date of notification referred to in sub-section (9) of section 14.

16.

Disqualification for being appointed, or for continuing as, a member of the Board.?

A person shall be disqualified for being appointed, or for continuing as, a member of the Board if?

(a)

he is not a Muslim and is less than twenty-one years of age;

(b)

he is found to be a person of unsound mind;

(c)

he is an undischarged insolvent;

(d)

he has been convicted of an offence involving moral turpitude and such conviction has not been reversed or he has not been granted full pardon in respect of such offence;

(da)

he has been held guilty of encroachment on any waqf property;

(e)

he has been on a previous occasion?

(i)

removed from his office as a member or as a mutawalli, or

(ii)

removed by an order of a competent court or tribunal from any position of trust either for mismanagement or for corruption.

17.

Meetings of the Board.?

(1)

The Board shall meet for the transaction of business at such time and places as may be provided by regulations.

(2)

The Chairperson, or in his absence, any member chosen by the members from amongst themselves shall preside at a meeting of the Board.

(3)

Subject to the provisions of this Act, all questions which come before any meeting of the Board shall be decided by a majority of votes of the members present, and in the case of equality of votes, the Chairperson or, in his absence, any other person presiding shall have a second or casting vote.

18.

Committees of the Board.?

(1)

The Board may, whenever it considers necessary, establish either generally or for a particular purpose or for any specified area or areas committees for the supervision of auqaf.

(2)

The Constitution, functions and duties and the term of office of such committees shall be determined from time to time by the Board:

Provided that it shall not be necessary for the members of such committees to be members of the Board.

19.

Resignation of Chairperson and members.?

The Chairperson or any other member may resign his office by writing under his hand addressed to the State Government:

Provided that the Chairperson or the member shall continue in office until the appointment of his successor is notified in the Official Gazette.

20.

Removal of Chairperson and member.?

(1)

The State Government may, by notification in the Official Gazette, remove the Chairperson of the Board or any member thereof if he?

(a)

is or becomes subject to any disqualifications specified in section 16; or

(b)

refuses to act or is incapable of acting or acts in a manner which the State Government, after hearing any explanation that he may offer, considers to be prejudicial to the interests of the auqaf; or

(c)

fails in the opinion of the Board, to attend three consecutive meetings of the Board, without sufficient excuse.

(2)

Where the Chairperson of the Board is removed under sub-section (1), he shall also cease to be a member of the

Board.

20A.

Removal of Chairperson by vote of no confidence.?

Without prejudice to the provisions of section 20, the Chairperson of a Board may be removed by vote of no confidence in the following manner, namely:?

(a)

no resolution expressing a vote of confidence or no confidence in any person elected as Chairperson of a Board shall be moved except in the manner prescribed and twelve months have not elapsed after the date of his election as a Chairperson and be removed except with the prior permission of the State Government;

(b)

notice for no confidence shall be addressed to the State Government stating clearly the grounds on which such motion is proposed to be moved and shall be signed by at least half the total members of the Board;

(c)

at least three members of the Board signing the notice of no confidence shall personally present to the State Government, the notice together with an affidavit signed by them to the effect that the signatures on no confidence motion are genuine and have been made by the signatories after hearing or reading the contents of the notice;

(d)

on receipt of the notice of no confidence, as provided hereinabove, the State Government shall fix such time, date and place as may be considered suitable for holding a meeting for the purpose of the proposed no confidence motion:

Provided that at least fifteen days notice shall be given for such a meeting;

(e)

notice for meeting under clause (d) shall also provide that in the event of no confidence motion being duly carried on or, election of the new Chairperson, as the case may be, shall also be held in the same meeting;

(f)

the State Government shall also nominate a Gazetted Officer (other than an officer of the department which is concerned with the supervision and administration of the Board) to act as presiding officer of the meeting in which the resolution for no confidence shall be considered;

(g)

the quorum for such a meeting of the Board shall be one-half of the total number of members of the Board;

(h)

the resolution for no confidence shall be deemed to be carried out, if passed by a simple majority of the members present;

(i)

if a resolution for no confidence is carried out, the Chairperson shall cease to hold office forthwith and shall be succeeded by his successor who shall be elected by another resolution in the same meeting;

(j)

election of the new Chairperson shall be conducted under clause (i), in the meeting under the chairmanship of the said presiding officer referred to in clause (f), in the following manner, namely:?

(A)

Chairperson shall be elected from amongst the elected members of the Board;

(B)

nomination of candidates shall be proposed and seconded in the meeting itself and election after withdrawal, if any, shall be held by method of secret ballot;

(C)

election shall be held by simple majority of the members present in the meeting and in case of equality of votes, the matter shall be decided by drawing of lots; and

(D)

proceedings of the meeting shall be signed by the presiding officer;

(k)

new Chairperson elected under clause (h) shall hold the office only up to the remainder of the term of the Chairperson removed by the resolution of no confidence; and

(l)

if the motion for passing the resolution of no confidence fails for want of quorum or lack of requisite majority at the meeting, no subsequent meeting for considering the motion of no confidence shall be held within six months of the date of the previous meeting.

21.

Filling of a vacancy.?

When the seat of a member becomes vacant by his removal, resignation, death or otherwise, a new member shall be appointed in his place and such member shall hold office so long as the member whose place he fills would have been entitled to hold office, if such vacancy had not occurred.

22.

Vacancies, etc., not to invalidate proceedings of the Board.?

No act or proceeding of the Board shall be invalid by reason only of the existence of any vacancy amongst its member or any defect in the constitution thereof.

23.

Appointment of Chief Executive Officer and his term of office and other conditions of service.?

(1)

There shall be a full-time Chief Executive Officer of the Board who shall be a Muslim and shall be appointed by the State Government, by notification in the Official Gazette, from a panel of two names suggested by the Board and who shall not be below the rank of Deputy Secretary to the State Government, and in case of non-availability of a Muslim officer of that rank, a Muslim officer of equivalent rank may be appointed on deputation.

(2)

The term of office and other conditions of service of the Chief Executive Officer shall be such as may be prescribed.

(3)

The Chief Executive Officer shall be ex officio Secretary of the Board and shall be under the administrative control of the Board.

24.

Officers and other employees of the Board.?

(1)

The Board shall have the assistance of such number of officers and other employees as may be necessary for the efficient performance of its functions under this Act, details thereof shall be determined by the Board in consultation with the State Government.

(2)

The appointment of officers and other employees, their term of office and conditions of service shall be such as may be provided by regulations.

25.

Duties and powers of Chief Executive Officer.?

(1)

Subject to the provisions of this Act and of the rules made thereunder and the directions of the Board, functions of the Chief Executive Officer shall include?

(a)

investigating the nature and extent of auqaf and waqf properties and calling whenever necessary, an inventory of waqf properties and calling, from time to time, for accounts, returns and information from mutawallis;

(b)

inspecting or causing inspection of waqf properties and accounts, records, deeds or documents relating thereto;

(c)

doing generally of such acts as may be necessary for the control, maintenance and superintendence of auqaf.

(2)

In exercising the powers of giving directions under sub-section (1) in respect of any waqf, the Board shall act in conformity with the directions by the waqf in the deed of the waqf, the purpose of waqf and such usage and customs of the waqf as are sanctioned by the school of Muslim law to which the waqf belongs.

(3)

Save as otherwise expressly provided in this Act, the Chief Executive Officer shall exercise such powers and perform such duties as may be assigned to him or delegated to him under this Act.

26.

Powers of Chief Executive officer in respect of orders or resolutions of Board.?

Where the Chief Executive Officer considers that an order or resolution passed by the Board?

(a)

has not been passed in accordance with the law; or

(b)

is in excess of or is an abuse of the powers conferred on the Board by or under this Act or by any other law; or

(c)

if implemented, is likely to?

(i)

cause financial loss to the Board or to the concerned waqf or to the auqaf generally; or

(ii)

lead to a riot or breach of peace; or

(iii)

cause danger to human life, health or safety; or

(d)

is not beneficial to the Board or to any waqf or to auqaf generally,

he may, before implementing such order or resolution, place the matter before the Board for its reconsideration and, if such order or resolution is not confirmed by a majority of vote of the members present and voting after such reconsideration, refer the matter to the State Government along with his objections to the order or resolution, and the decision of the State Government thereon shall be final.

27.

Delegation of powers by the Board.?

The Board may, by a general or special order in writing, delegate to the Chairperson, any other member, the Chief Executive Officer or any other officer or servant of the Board or any area committee, subject to such conditions and limitations as may be specified in the said order, such of its powers and duties under this Act, as it may deem necessary, except the powers and functions of the Board mentioned under clauses (c), (d), (g) and (j) of sub-section (2) of section 32 and section 110.

28.

Power of District Magistrate, Additional District Magistrate or Sub-Divisional Magistrate to implement the directions of the Board.?

Subject to the provisions of this Act and the rules made thereunder, the District Magistrate or in his absence an Additional District Magistrate or Sub-Divisional Magistrate of a District in the State shall be responsible for implementation of the decisions of the Board which may be conveyed through the Chief Executive Officer and the Board may, wherever considers necessary, seek directions from the Tribunal for the implementation of its decisions.

29.

Powers of Chief Executive Officer to inspect records, registers, etc.?

(1)

The Chief Executive Officer or any officer of the Board duly authorised by him in this behalf shall, subject to such conditions as may be prescribed, be entitled at all reasonable time to inspect, in any public office, any records, registers or other documents relating to a waqf, or movable or immovable properties which are waqf properties or are claimed to be waqf properties.

(2)

The mutawalli or any other person having the custody of any document related to waqf properties shall produce the same, within the prescribed period, before the Chief Executive Officer on being called upon to do so in writing.(3) Subject to such conditions as may be prescribed, an agency of the Government or any other organisation shall supply, within ten working days, copies of the records, registers of properties or other documents relating to waqf properties or claimed to be waqf properties, to the Chief Executive Officer on a written request to this effect from him:

Provided that before taking any course of action as mentioned in sub-sections (2) and (3), the Chief Executive Officer

shall obtain approval of the Board.

30.

Inspection of records.?

(1)

The Board may allow inspection of its proceedings or other records in its custody and issue copies of the same on payment of such fees and subject to such conditions as may be prescribed.

(2)

All copies issued under this section shall be certified by the Chief Executive Officer of the Board in the manner provided in section 76 of the Indian Evidence Act, 1872 (1 of 1872).

(3)

The powers conferred on the Chief Executive Officer by sub-section (2) may be exercised by such other officer or officers of the Board as may either generally or specially be authorised in this behalf by the Board.

31.

Prevention of disqualification for membership of Parliament.?

It is hereby declared that the offices of the Chairperson or member of a Board shall not be disqualified and shall be deemed never to have been disqualified for being chosen as, or for being, a Member of Parliament or a Member of Union territory Legislature or a Member of a State Legislature if so declared under a law made by the appropriate State Legislature.

32.

Powers and functions of the Board.?

(1)

Subject to any rules that may be made under this Act, the general superintendence of all auqaf in a State shall vest in the Board established or the State; and it shall be the duty of the Board so to exercise its powers under this Act as to ensure that the auqaf under its superintendence are properly maintained, controlled and administered and the income thereof is duly applied to the objects and for the purposes for which such auqaf were created or intended:

Provided that in exercising its powers under this Act in respect of any waqf, the Board shall act in conformity with the directions of the waqf, the purposes of the waqf and any usage or custom of the waqf sanctioned by the school of Muslim law to which the waqf belongs.

Explanation.?

For the removal of doubts, it is hereby declared that in this sub-section, 'waqf' includes a waqf in relation to which any scheme has been made by any court of law, whether before or after the commencement of this Act.

(2)

Without prejudice to the generality of the foregoing power, the functions of the Board shall be?

(a)

to maintain a record containing information relating to the origin, income, object and beneficiaries of every waqf;

(b)

to ensure that the income and other property of auqaf are applied to the objects and for the purposes for which such auqaf were intended or created;

(c)

to give directions for the administration of auqaf;

(d)

to settle schemes of management for a waqf:

Provided that no such settlement shall be made without giving the parties affected an opportunity of being heard;

(e)

to direct?

(i)

the utilisation of the surplus income of a waqf consistent with the objects of waqf;

(ii)

in what manner the income of a waqf, the objects of which are not evident from any written instrument, shall be utilised;

(iii)

in any case where any object of waqf has ceased to exist or has become incapable of achievement, that so much of the

income of the waqf as was previously applied to that object shall be applied to any other object, which shall be similar, or nearly similar or to the original object or for the benefit of the poor or for the purpose of promotion of knowledge and learning in the Muslim community:

Provided that no direction shall be given under this clause without giving the parties affected, an opportunity of being heard.

Explanation.?

For the purposes of this clause, the powers of the Board shall be exercised?

(i)

in the case of a Sunni waqf, by the Sunni members of the Board only; and

(ii)

in the case of a Shia waqf, by the Shia members of the Board only:

Provided that where having regard to the number of the Sunni or Shia members in the board and other circumstances, it appears to the Board that the power should not be exercised by such members only, it may co-opt such other Muslims being Sunnis or Shias, as the case may be, as it thinks fit, to be temporary members of the Board for exercising its powers under this clause;

(f)

to scrutinise and approve the budgets submitted by mutawallis and to arrange for auditing of account of auqaf;

(g)

to appoint and remove mutawallis in accordance with the provisions of this Act;

(h)

to take measures for the recovery of lost properties of any waqf;

(i)

to institute and defend suits and proceedings relating to auqaf;

(j)

to sanction lease of any immovable property of a waqf in accordance with the provisions of this Act and the rules made thereunder: Provided that no such sanction shall be given unless a majority of not less than two-thirds of the members of the Board present cast their vote in favour of such transaction:

Provided further that where no such sanction is given by the Board, the reasons for doing so shall be recorded in writing.

(k)

to administer the Waqf Fund;

(l)

to call for such returns, statistics, accounts and other information from the mutawallis with respect to the waqf property as the Board may, from time to time, require;

(m)

to inspect, or cause inspection of, waqf properties, accounts, records or deeds and documents relating thereto;

(n)

to investigate and determine the nature and extent of waqf and waqf property, and to cause, whenever necessary, a survey of such waqf property;

(na)

to determine or cause to be determined, in such manner as may be specified by the Board, market rent of the waqf land or building;

(o)

generally do all such acts as may be necessary for the control, maintenance and administration of auqaf.

(3)

Where the Board has settled any scheme of management under clause (d) or given any direction under clause (e) of sub-section (2), any person interested in the waqf or affected by such settlement or direction may institute a suit in a Tribunal for setting aside such settlement or directions and the decision of the Tribunal thereon shall be final.

(4)

Where the Board is satisfied that any waqf land, which is a waqf property, has the potential for development as an educational institution, shopping centre, market, housing or residential flats and the like, market, housing flats and the like, it may serve upon the mutawalli of the concerned waqf a notice requiring him within such time, but not less than

sixty days, as may be specified in the notice, to convey its decision whether he is willing to execute the development works specified in the notice.

(5)

On consideration of the reply, if any, received to the notice issued under sub-section (4), the Board, if it is satisfied that the mutawalli is not willing or is not capable of executing the works required to be executed in terms of the notice, it may, *** take over the property, clear it of any building or structure thereon, which, in the opinion of the Board is necessary for execution of the works and execute such works from waqf funds or from the finances which may be raised on the security of the properties of the waqf concerned, and control and manage the properties till such time as all expenses incurred by the Board under this section, together with interest thereon, the expenditure on maintenance of such works and other legitimate charges incurred on the property are recovered from the income derived from the property:

Provided that the Board shall compensate annually the mutawalli of the concerned waqf to the extent of the average annual net income derived from the property during the three years immediately preceding the taking over of the property by the Board.

(6)

After all the expenses as enumerated in sub-section (5) have been recouped from the income of the developed properties, the developed properties shall be handed over to mutawalli of the concerned waqf.

33.

Powers of inspection by Chief Executive Officer or persons authorised by him.?

(1)

With a view to examining whether, by reason of any failure or negligence on the part of a mutawalli in the performance of his executive or administrative duties, any loss or damage has been caused to any waqf or waqf property, the Chief Executive Officer or any other person authorised by him in writing with the prior approval of the Board, ***, may inspect all movable and immovable properties, which are

(2)

waqf properties, and all records, correspondences, plans, accounts and other documents relating thereto. Whenever any such inspection as referred to in sub-section (1) is made, the concerned mutawalli and all officers and other employees working under him and every person connected with the administration of the waqf, shall extend to the person making such inspection, all such assistance and facilities as may be necessary and reasonably required by him to carry out such inspection, and shall also produce for inspection any movable property or documents relating to the waqf as may be called for by the person making the inspection and furnish to him such information relating to the waqf as may be required by him.

(3)

Where, after any such inspection, it appears that the concerned mutawalli or any officer or other employee who is or was working under him had mis-appropriated, misapplied or fraudulently retained, any money or other waqf property, or had incurred irregular, unauthorised or improper expenditure from the funds of the waqf, the Chief Executive Officer may, after giving the mutawalli or the person concerned a reasonable opportunity of showing cause why an order for the recovery of the amount or property, should not be passed against him and after considering such explanation, if any, as such person may furnish, determine the amount or the property which has been mis-appropriated, misapplied or fraudulently retained, or the amount of the irregular, unauthorised or improper expenditure incurred by such person, and make an order directing such person to make payment of the amount so determined and to restore the said property to the waqf, within such time as may be specified in the order.

(4)

A mutawalli or other person aggrieved by such order may, within thirty days of the receipt by him of the order, appeal to the Tribunal:

Provided that no such appeal shall be entertained by the Tribunal unless the appellant first deposits with the Chief Executive Officer the amount which has been determined under sub-section (3) as being payable by the appellant and the Tribunal shall have no power to make any order staying pending the disposal of the appeal, the operation of the order made by the Chief Executive Officer under sub-section (3).

(5)

The Tribunal may, after taking such evidence as it may think fit, confirm, reverse or modify the order made by the Chief Executive Officer under sub-section (3) or may remit, either in whole or in part, the amount specified in such order and

may make such orders as to costs as it may think appropriate in the circumstances of the case.

(6)

The order made by the Tribunal under sub-section (5) shall be final.

34.

Recovery of the amount determined under section 33.?

Where any mutawalli or other person who has been ordered, whether under sub-section (3) or sub-section (5) of section 33, to make any payment or to restore the possession of any property, omits or fails to make such payment or restoration within the time specified in such order, the Chief Executive Officer, with the prior approval of the Board shall, take such steps as he may think fit for the recovery of possession of the property aforesaid and shall also send a certificate to the Collector of the district in which the property of such mutawalli or other person is situate, stating therein the amount that has been determined by him or by the Tribunal, as the case may be, under section 33, as being payable by such mutawalli or other person, and, thereupon, the Collector shall recover the amount specified in such certificate as if it were an arrear of land revenue and on the recovery of such amount, pay the same to the Chief Executive Officer, who shall, on receipt thereof, credit the amount to the funds of the concerned waqf.

35.

Conditional attachment by Tribunal.?

(1)

Where the Chief Executive Officer is satisfied that the mutawalli or any other person who has been ordered under sub-section (3) or sub-section (5) of section 33 to make any payment, with intent to defeat or delay the execution of the said order,?

(a)

is about to dispose of the whole or any part of the property; or

(b)

is about to remove the whole or any part of the property from the jurisdiction of the Chief Executive Officer, he may, with prior approval of the Board, apply to the Tribunal for the conditional attachment of the said property or such part thereof, as he may think necessary.

(2)

The Chief Executive Officer shall, unless the Tribunal otherwise directs, specify in the application the property required to be attached and the estimated value thereof.

(3)

The Tribunal may direct the mutawalli or the person concerned, as the case may be, within a time to be fixed by it, either to furnish security, in such sum as may be specified in the order, to produce and place at the disposal of the Tribunal when required, the said property or the value of the same or such portion thereof as may be sufficient to satisfy the amount specified in the certificate referred to in section 34, or to appear and show cause why he should not furnish such security.

(4)

The Tribunal may also in the order direct the conditional attachment of the whole or any portion of the property so specified.

(5)

Every attachment made under this section shall be made in accordance with the provisions of the Code of Civil Procedure, 1908 (5 of 1908), as if it were an order for attachment made under the provision of the said Code.

Chapter V

Registration of auqaf

36.

Registration.?

(1)

Every waqf, whether created before or after the commencement of this Act, shall be registered at the office of the Board.

(2)

Application for registration shall be made by the mutawalli:

Provided that such applications may be made by the waqf or his descendants or a beneficiary of the waqf or any Muslim belonging to the sect to which the waqf belongs.

(3)

An application for registration shall be made in such form and manner and at such place as the Board may by regulation provide and shall contain the following particulars:—

(a)

a description of the waqf properties sufficient for the identification thereof;

(b)

the gross annual income from such properties;

(c)

the amount of land revenue, cesses, rates and taxes annually payable in respect of the waqf properties;

(d)

an estimate of the expenses annually incurred in the realisation of the income of the waqf properties;

(e)

the amount set apart under the waqf for—

(i)

the salary of the mutawalli and allowances to the individuals;

(ii)

purely religious purposes;

(iii)

charitable purposes; and

(iv)

any other purposes;

(f)

any other particulars provided by the Board by regulations.

(4)

Every such application shall be accompanied by a copy of the waqf deed or if no such deed has been executed or a copy thereof cannot be obtained, shall contain full particulars, as far as they are known to the applicant, of the origin, nature and objects of the waqf.

(5)

Every application made under sub-section (2) shall be signed and verified by the applicant in the manner provided in the Code of Civil Procedure, 1908 (5 of 1908) for the signing and verification of pleadings.

(6)

The Board may require the applicant to supply any further particulars or information that it may consider necessary.

(7)

On receipt of an application for registration, the Board may, before the registration of the waqf make such inquiries as it thinks fit in respect of the genuineness and validity of the application and correctness of any particulars therein and when the application is made by any person other than the person administering the waqf property, the Board shall, before registering the waqf, give notice of the application to the person administering the waqf property and shall hear him if he desires to be heard.

(8)

In the case of auqaf created before the commencement of this Act, every application for registration shall be made, within three months from such commencement and in the case of auqaf created after such commencement, within three months from the date of the creation of the waqf:

Provided that where there is no Board at the time of creation of a waqf, such application will be made within three months from the date of establishment of the Board.

37.

Register of auqaf.—

(1)

The Board shall maintain a register of auqaf which shall contain in respect of each waqf copies of the waqf deeds, when available and the following particulars, namely:—

(a)

the class of the waqf;

- (b)
the name of the mutawallis;
- (c)
the rule of succession to the office of mutawalli under the waqf deed or by custom or by usage;
- (d)
particulars of all waqf properties and all title deeds and documents relating thereto;
- (e)
particulars of the scheme of administration and the scheme of expenditure at the time of registration;
- (f)
such other particulars as may be provided by regulations.

(2)

The Board shall forward the details of the properties entered in the register of auqaf to the concerned land record office having jurisdiction of the waqf property. (3) On receipt of the details as mentioned in sub-section (2), the land record office shall, according to established procedure, either make necessary entries in the land record or communicate, within a period of six months from the date of registration of waqf property under section 36, its objections to the Board.

38.

Powers of Board to appoint Executive Officer.?

(1)

Notwithstanding anything contained in this Act, the Board may, if it is of the opinion that it is necessary so to do in the interests of the waqf, appoint on whole-time or part-time or in an honorary capacity, subject to such conditions as may be provided by regulations, an Executive Officer with such supporting staff as it considers necessary for any waqf having a gross annual income of not less than five lakh rupees:

Provided that the person chosen for appointment should be a person professing Islam.

(2)

Every Executive Officer appointed under sub-section (1) shall exercise such powers and discharge such duties as pertain only to the administration of the property of the waqf for which he has been appointed and shall exercise those powers and discharge those duties under the direction, control and supervision of the Board:

Provided that the Executive Officer who is appointed for a waqf having a gross annual income of not less than five lakh rupees shall ensure that the budget of the waqf is submitted, the accounts of the waqf are regularly maintained, and the yearly statement of accounts are submitted within such time as the Board may specify.

(3)

While exercising his powers and discharging his functions under sub-section (2), the Executive Officer shall not interfere with any religious duties or any usage or custom of the waqf sanctioned by the Muslim law.

(4)

The salaries and allowances of the Executive Officer and his staff shall be fixed by the Board and in fixing the quantum of such salary the Board shall have due regard to the income of the waqf, the extent and nature of the duties of the Executive Officer and shall also ensure that the amounts of such salaries and allowances are not disproportionate to the income of the waqf and do not operate as an unnecessary financial burden on it.

(5)

The salaries and allowances of the Executive Officer and his staff shall be paid by the Board from the Waqf Fund and, if the waqf generates any additional income as a result of appointment of the Executive Officer, the Board may claim reimbursement of amounts spent on the salaries and allowances from the fund of the waqf concerned.

(6)

The Board may, for sufficient reasons, and after giving to the Executive Officer or a member of his staff, a reasonable opportunity of being heard, suspend, remove or dismiss the Executive Officer or a member of his staff from his post.

(7)

Any Executive Officer or a member of his staff who is aggrieved by any order or removal or dismissal made under sub-section (6) may, within thirty days from the date of communication of the order, prefer an appeal against the order to the Tribunal and the Tribunal may, after considering such representation as the Board may make in the matter, and after giving a reasonable opportunity to the Executive Officer or a member of his staff of being heard, confirm, modify or reverse the order.

39.

Powers of Board in relation to auqaf which have ceased to exist.?

(1)

The Board shall, if it is satisfied that the objects or any part thereof, of a waqf have ceased to exist, whether such cesser took place before or after the commencement of this Act, cause an inquiry to be held by the Chief Executive Officer, in the prescribed manner, to ascertain the properties and funds pertaining to such waqf.

(2)

On the receipt of the report of inquiry of the Chief Executive Officer, the Board shall pass an order,?

(a)

specifying the property and funds of such waqf;

(b)

directing that any property or funds pertaining to such waqf which have been recovered shall be applied or utilised for the renovation of any waqf property and where there is no need for making any such renovation or where utilisation of the funds for such renovation is not possible, be appropriated, to any of the purposes specific in sub-clause (iii) of clause (e) of sub-section (2) of section 32.

(3)

The Board may, if it has reason to believe that any building or other place which was being used for religious purpose or instruction or for charity has, whether before or after the commencement of this Act, ceased to be used for that purpose, make an application to the Tribunal for an order directing the recovery of possession of such building or other place.

(4)

The Tribunal may, if it is satisfied, after making such inquiry as it may think fit, that such building or other place?

(a)

is waqf property;

(b)

has not been acquired under any law for the time being in force relating to acquisition of land or is not under any process of acquisition under any such law, or has not vested in the State Government under any law for the time being in force relating to land reforms; and

(c)

is not in the occupation of any person who has been authorised by or under any law for the time being in force to occupy such building or other place, make an order?

(i)

directing the recovery of such building or place from any person who may be in unauthorised possession thereof, and

(ii)

directing that such property, building or place be used for religious purpose or instruction as before, or if such use is not possible, be utilised for any purpose specified in sub-clause (iii) of clause (e) of sub-section (2) of section 32.

40.

Decision if a property is waqf property.?

(1)

The Board may itself collect information regarding any property which it has reason to believe to be waqf property and if any question arises whether a particular property is waqf property or not or whether a waqf is a Sunni waqf or a Shia waqf, it may, after making such inquiry as it may deem fit, decide the question.

(2)

The decision of the Board on a question under sub-section (1) shall, unless revoked or modified by the Tribunal, be final.

(3)

Where the Board has any reason to believe that any property of any trust or society registered in pursuance of the Indian Trusts Act, 1882 (2 of 1882) or under the Societies Registration Act, 1860 (21 of 1860) or under any other Act, is waqf property, the Board may notwithstanding anything contained in such Act, hold an inquiry in regard to such property and if after such inquiry the Board is satisfied that such property is waqf property, call upon the trust or society, as the case may be, either to register such property under this Act as waqf property or show cause why such property should not be so registered:

Provided that in all such cases, notice of the action proposed to be taken under this sub-section shall be given to the

authority by whom the trust or society had been registered.

(4)

The Board shall, after duly considering such cause as may be shown in pursuance of notice issued under sub-section (3), pass such orders as it may think fit and the order so made by the Board, shall be final, unless it is revoked or modified by a Tribunal.

41.

Power to cause registration of waqf and to amend register.?

The Board may direct a mutawalli to apply for the registration of a waqf, or to supply any information regarding a waqf or may itself cause the waqf to be registered or may at any time amend the register of auqaf.

42.

Change in the management of auqaf to be notified.?

(1)

In the case of any change in the management of a registered waqf due to the death or retirement or removal of the mutawalli, the incoming mutawalli, shall forthwith, and any other person may notify the change to the Board.

(2)

In the case of any other change in any of the particulars mentioned in section 36, the mutawalli shall, within three months from the occurrence of the change, notify such change to the Board.

43.

Auqaf registered before the commencement of this Act deemed to be registered.?

Notwithstanding anything contained in this Chapter, where any waqf has been registered before the commencement of this Act, under any law for the time being in force, it shall not be necessary to register the waqf under the provisions of this Act and any such registration made before such commencement shall be deemed to be a registration made under this Act.

Chapter VI

Maintenance of accounts of auqaf

44.

Budget.?

(1)

Every mutawalli of a waqf shall, in every year prepare, in such form and at such time as may be prescribed, a budget in respect of the financial year next ensuing showing the estimated receipts and expenditure during that financial year.

(2)

Every such budget shall be submitted by the mutawalli at least thirty days before the beginning of the financial year to the Board and shall make adequate provision for the following:?

(i)

for carrying out the objects of the waqf;

(ii)

for the maintenance and preservation of the waqf property;

(iii)

for the discharge of all liabilities and subsisting commitments binding on the waqf under this Act or any other law for the time being in force.

(3)

In case the Board considers any item in the budget being contrary to the objects of the waqf and the provisions of this Act, it may give such direction for addition or deletion of such item as it may deem fit.

(4)

If in the course of the financial year the mutawalli finds it necessary to modify the provisions made in the budget in regard to the receipt or to the distribution of the amounts to be expended under the different heads, he may submit to the Board a supplementary or a revised budget and the provisions of sub-section (3) shall, as far as may be, apply to such supplementary or revised budget.

45.

Preparation of budget of auqaf under direct management of the Board.?

(1)

The Chief Executive Officer shall prepare, in such form and at such time as may be prescribed, a budget in respect of the financial year next ensuing showing the estimated receipts and expenditure for each of the auqaf under the direct management of the Board, showing therein the estimated receipts and expenditure and submit it to the Board for its approval.

(2)

While submitting the budget under sub-section (1), the Chief Executive Officer shall also prepare statement giving details of the increase, if any, in the income of each waqf under the direct management of the Board and the steps which have been taken for its better management and the results accruing therefrom during the year.

(3)

The Chief Executive Officer shall keep regular accounts and be responsible for the proper management of every waqf under the direct management of the Board.

(4)

Every budget submitted by the Chief Executive Officer under sub-section (1) shall comply with the requirements of section 46 and, for this purpose, references therein to the mutawalli of the waqf shall be construed as references to the Chief Executive Officer.

(5)

The audit of accounts of every waqf under the direct management of the Board shall be undertaken by the State Examiner of Local funds or any other officer appointed by the State Government for this purpose, irrespective of the income of the waqf.

(6)

The provisions of sub-sections (2) and (3) of section 47 and the provisions of sections 48 and 49 shall, in so far as they are not inconsistent with the provisions of this section, apply to the audit of accounts referred to in this section.

(7)

Where any waqf is under the direct management of the Board, such administrative charges as may be specified by the Chief Executive Officer shall be payable by the waqf to the Board:

Provided that the Chief Executive Officer shall not collect more than ten per cent. of the gross annual income of the waqf under the direct management of the Board as administrative charges.

46.

Submission of Accounts of auqaf.?

(1)

Every mutawalli shall keep regular accounts.

(2)

Before the 1st day of July next, following the date on which the application referred to in section 36 has been made and thereafter before the 1st day of July in every year, every mutawalli of a waqf shall prepare and furnish to the Board a full and true statement of accounts, in such form and containing such particulars as may be provided by regulations by the Board, of all moneys received or expended by the mutawalli on behalf of the waqf during the period of twelve months ending on the 31st day of March, or, as the case may be, during that portion of the said period during which the provisions of this Act, have been applicable to the waqf:

Provided that the date on which the annual accounts are to be closed may be varied at the discretion of the Board.

47.

Audit of accounts of auqaf.?

(1)

The accounts of auqaf submitted to the Board under section 46 shall be audited and examined in the following manner, namely:?

(a)

in the case of a waqf having no income or a net annual income not exceeding fifty thousand rupees, the submission of a statement of accounts shall be a sufficient compliance with the provisions of section 46 and the accounts of two per cent. of such auqaf shall be audited annually by an auditor appointed by the Board;

(b)

the accounts of the waqf having net annual income exceeding fifty thousand rupees shall be audited annually, or at such other intervals as may be prescribed, by an auditor appointed by the

Board from out of the panel of auditors prepared by the State Government and while drawing up such panel of auditors, the State Government shall specify the scale of remuneration of auditors;

(c)

the State Government may, under intimation to the Board, at any time cause the account of any waqf audited by the State Examiner of Local Funds or by any other officer designated for that purpose by that State Government.

(2)

The auditor shall submit his report to the Board and the report of the auditor shall among other things, specify all cases of irregular, illegal or improper expenditure or of failure to recover money or other property caused by neglect or misconduct and any other matter which the auditor considers it necessary to report; and the report shall also contain the name of any person who, in the opinion of the auditor, is responsible for such expenditure or failure and the auditor shall in every such case certify the amount of such expenditure or loss as due from such person.

(3)

The cost of the audit of the accounts of a waqf shall be met from the funds of that waqf:

Provided that the remuneration of the auditors appointed from out of the panel drawn by the State Government in relation to auqaf having a net annual income of more than fifty thousand rupees shall be paid in accordance with the scale of remuneration specified by the State Government under clause (c) of sub-section (1):

Provided further that where the audit of the accounts of any waqf is made by the State Examiner of Local Funds or any other officer designated by the State Government in this behalf, the cost of such audit shall not exceed one and a half per cent. of the net annual income of such waqf and such costs shall be met from the funds of the auqaf concerned.

48.

Board to pass orders on auditor's report.?

(1)

The Board shall examine the auditor's report, and may call for the explanation of any person in regard to any matter mentioned therein, and shall pass such orders as it thinks fit including orders for the recovery of the amount certified by the auditor under sub-section (2) of section 47.

(2)

The mutawalli or any other person aggrieved by any order made by the Board may, within thirty days of the receipt by him of the order, apply to the Tribunal to modify or set aside the order and the Tribunal may, after taking such evidence as it may think necessary, confirm or modify the order or remit the amount so certified, either in whole or in part, and may also make such order as to costs as it may think appropriate in the circumstances of the case.

(3)

No application made under sub-section (2) shall be entertained by the Tribunal unless the amount certified by the auditor under sub-section (2) of section 47 has first been deposited in the Tribunal and the Tribunal shall not have any power to stay the operation of the order made by the Board under sub-section (1).

(4)

The order made by the Tribunal under sub-section (2) shall be final.

(5)

Every amount for the recovery of which any order has been made under sub-section (1) or sub-section (2) shall, where such amount remains unpaid, be recoverable in the manner specified in section 34 or section 35 as if the said order were an order for the recovery of any amount determined under sub-section (3) of section 35.

49.

Sums certified to be due recoverable as arrears of land revenue.?

(1)

Every sum certified to be due from any person by an auditor in his report under section 47 unless such certificate is modified or cancelled by an order of the Board or of the Tribunal made under section 48, and every sum due on a modified certificate shall be paid by such person within sixty days after the service of a demand notice for the same issued by the Board.

(2)

If such payment is not made in accordance with the provisions of sub-section (1), the sum payable may, on a certificate issued by the Board after giving the person concerned an opportunity of being heard, be recovered in the same as an arrear of land revenue.

50.

Duties of mutawalli.?

It shall be the duty of every mutawalli?

(a)

to carry out the directions of the Board in accordance with the provisions of this Act or of any rule or order made thereunder;

(b)

to furnish such returns and supply such information or particulars as may from time to time be required by the Board in accordance with the provisions of this Act or of any rule or order made thereunder;

(c)

to allow inspection of waqf properties, accounts or records or deeds and documents relating thereto;

(d)

to discharge all public dues; and

(e)

to do any other act which he is lawfully required to do by or under this Act.

51.

Alienation of waqf property without sanction of Board to be void.?

(1)

Notwithstanding anything contained in the waqf deed, any lease of any immovable property which is waqf property, shall be void unless such lease is effected with the prior sanction of the Board:

Provided that no mosque, dargah, khanqah, graveyard, or imambara shall be leased except any unused graveyards in the States of Punjab, Haryana and Himachal Pradesh where such graveyard has been leased out before the date of commencement of the Wakf (Amendment) Act, 2013 (27 of 2013).

(1A)

Any sale, gift, exchange, mortgage or transfer of waqf property shall be void ab initio:

Provided that in case the Board is satisfied that any waqf property may be developed for the purposes of the Act, it may, after recording reasons in writing, take up the development of such property through such agency and in such manner as the Board may determine and move a resolution containing recommendation of development of such waqf property, which shall be passed by a majority of two-thirds of the total membership of the Board:

Provided further that nothing contained in this sub-section shall affect any acquisition of waqf properties for a public purpose under the Land Acquisition Act, 1894 (1 of 1894) or any other law relating to acquisition of land if such acquisition is made in consultation with the Board:

Provided also that?

(a)

the acquisition shall not be in contravention of the Places of Public Worship (Special Provisions) Act, 1991 (42 of 1991);

(b)

the purpose for which the land is being acquired shall be undisputedly for a public purpose;

(c)

no alternative land is available which shall be considered as more or less suitable for that purpose; and

(d)

to safeguard adequately the interest and objective of the waqf, the compensation shall be at the prevailing market value or a suitable land with reasonable solatium in lieu of the acquired property.

* * * * *

52.

Recovery of waqf property transferred in contravention of section 51.?

(1)

If the Board is satisfied, after making any inquiry in such manner as may be prescribed, that any immovable property of a waqf entered as such in the register of waqf maintained under section 36, has been transferred without the previous sanction of the Board in contravention of the provisions of section 51 or section 56, it may send a requisition to the Collector within whose jurisdiction the property is situate to obtain and deliver possession of the property to it.

(2)

On receipt of a requisition under sub-section (1), the Collector shall pass an order directing the person in possession of the property to deliver the property to the Board within a period of thirty days from the date of the service of the order.

(3)

Every order passed under sub-section (2) shall be served?

(a)

by giving or tendering the order, or by sending it by post to the person for whom it is intended; or

(b)

if such person cannot be found, by affixing the order on some conspicuous part of his last known place of abode or business, or by giving or tendering the order to some adult male member or servant of his family or by causing it to be affixed on some conspicuous part of the property to which it relates:

Provided that where the person on whom the order is to be served, is a minor, service upon his guardian or upon any adult male member or servant of his family shall be deemed to be the service upon the minor.

(4)

Any person aggrieved by the order of the Collector under sub-section (2) may, within a period of thirty days from the date of the service of the order, prefer an appeal to the Tribunal within whose jurisdiction the property is situate and the decision of the Tribunal on such appeal shall be final.

(5)

Where an order passed under sub-section (2) has not been complied with and the time for appealing against such order has expired without an appeal having been preferred or the appeal, if any, preferred within that time has been dismissed, the Collector shall obtain possession of the property in respect of which the order has been made, using such force, if any, as may be necessary for the purpose and deliver it to the Board.

(6)

In exercising his functions under this section the Collector shall be guided by such rules as may be provided by regulations.

52A.

Penalty for alienation of waqf property without sanction of Board.?

(1)

Whoever alienates or purchases or takes possession of, in any manner whatsoever, either permanently or temporarily, any movable or immovable property being a waqf property, without prior sanction of the Board, shall be punishable with rigorous imprisonment for a term which may extend to two years: Provided that the waqf property so alienated shall without prejudice to the provisions of any law for the time being in force, be vested in the Board without any compensation therefor.

(2)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974) any offence punishable under this section shall be cognizable and non-bailable.

(3)

No court shall take cognizance of any offence under this section except on a complaint made by the Board or any officer duly authorised by the State Government in this behalf.

(4)

No court inferior to that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try any offence punishable under this section.

53.

Restriction on purchase of property on behalf of waqf.?

Notwithstanding anything contained in a waqf deed, no immovable property shall be purchased for or on behalf of any waqf from the funds of any waqf except with prior sanction of the Board, and the Board shall not accord such sanction unless it considers that the acquisition of such property is necessary or beneficial to the waqf and that the price proposed to be paid therefor is adequate and reasonable:

Provided that before such sanction is accorded, the particulars relating to the proposed transaction shall be published in the Official Gazette inviting objections and suggestions with respect thereto and, the Board shall, after considering the objections and suggestions that may be received by it from mutawallis or other persons interested in the waqf, make such orders as it may think fit.

54.

Removal of encroachment from waqf property.?

(1)

Whenever the Chief Executive Officer considers whether on receiving any complaint or on his own motion that there has been an encroachment on any land, building, space or other property which is waqf property and, which has been registered as such under this Act, he shall cause to be served upon the encroacher a notice specifying the particulars of the encroachment and calling upon him to show cause before a date to be specified in such notice, as to why an order requiring him to remove the encroachment before the date so specified should not be made and shall also send a copy of such notice to the concerned mutawalli.

(2)

The notice referred to in sub-section (1) shall be served in such manner as may be prescribed.

(3)

If, after considering the objections, received during the period specified in the notice, and after conducting an inquiry in such manner as may be prescribed, the Chief Executive Officer is satisfied that the property in question is waqf property and that there has been an encroachment on any such waqf property, he may, make an application to the Tribunal for grant of order of eviction for removing such encroachment and deliver possession of the land, building, space or other property encroached upon to the mutawalli of the waqf.

(4)

The Tribunal, upon receipt of such application from the Chief Executive Officer, for reasons to be recorded therein, make an order of eviction directing that the waqf property shall be vacated by all persons who may be in occupation thereof or any part thereof, and cause a copy of the order to be affixed on the outer door or some other conspicuous part of the waqf property: Provided that the Tribunal may before making an order of eviction, give an opportunity of being heard to the person against whom the application for eviction has been made by the Chief Executive Officer.

(5)

If any person refuses or fails to comply with the order of eviction within forty-five days from the date of affixture of the order under sub-section (2), the Chief Executive Officer or any other person duly authorised by him in this behalf may evict that person from, and take possession of, the waqf property.

55.

Enforcement of orders made under section 54.?

Where the person, ordered under sub-section (4) of section 54 to remove any encroachment, omits or fails to remove such encroachment, within the time specified in the order or, as the case may be, fails to vacate the land, building, space or other property to which the order relates, within the time aforesaid, the Chief Executive Officer may refer the order of the Tribunal to the Executive Magistrate within the local limits of whose jurisdiction the land, building, space or other property, is situate for evicting the encroacher, and, thereupon, such Magistrate shall make an order directing the encroacher to remove the encroachment, or, as the case may be, vacate the land, building, space or other property and to deliver possession thereof to the concerned mutawalli and in default of compliance with the order, remove the encroachment or, as the case may be, evict the encroacher from the land, building, space or other property and may, for this purpose, take such police assistance as may be necessary.

55A.

Disposal of property left on waqf property by unauthorised occupants.?

(1)

Where any person has been evicted from any waqf property under sub-section (4) of section 54, the Chief Executive Officer may, after giving fourteen days' notice to the person from whom possession of the waqf property has been taken and after publishing the notice in at least one newspaper having circulation in the locality and after proclaiming the contents of the notice by placing it on conspicuous part of the waqf property, remove or cause to be removed or dispose of by public auction any property remaining on such premises. (2) Where any property is sold under sub-section (1), the sale proceeds shall, after deducting the expenses relating to removal, sale and such other expenses, the amount, if any, due to the State

Government or a local authority or a corporate authority on account of arrears of rent, damages or costs, be paid to such person, as may appear to the Chief Executive Officer to be entitled to the same:

Provided that where the Chief Executive Officer is unable to decide as to the person to whom the balance of the amount

is payable or as to the appointment of the same, he may refer such dispute to the Tribunal and the decision of the Tribunal thereon shall be final.

56.

Restriction on power to grant lease of waqf property.?

(1)

A lease for any period exceeding thirty years of any immovable property which is waqf property, shall, notwithstanding anything contained in the deed or instrument of waqf or in any other law for the time being in force, be void and of no effect:

Provided that a lease for any period up to thirty years may be made for commercial activities, education or health purposes, with the approval of the State Government, for such period and purposes as may be specified in the rules made by the Central Government: Provided further that lease of any immovable waqf property, which is an agricultural land, for a period exceeding three years shall, notwithstanding anything contained in the deed or instrument of waqf or in any other law for the time being in force, be void and of no effect:

Provided also that before making lease of any waqf property, the Board shall publish the details of lease and invite bids in at least one leading national and regional news papers.

(2)

A lease for a period of one year but not exceeding thirty years of immovable property which is waqf property shall, notwithstanding anything contained in the deed or instrument of waqf or in any other law for the time being in force, be void and of no effect unless it is made with the previous sanction of the Board. The Board shall, in granting sanction for lease *** or renewal thereof under this section review the terms and conditions on which the lease *** is proposed to be granted or renewed and make its approval subject to the revision of such terms and conditions in such manner as it may direct:

Provided that the Board shall immediately intimate the State Government regarding a lease for any period exceeding three years of any waqf property and thereafter it may become effective after the expiry of forty-five days from the date on which the Board intimates the State Government. (4) Every rule made by the Central Government under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

57.

Mutawalli entitled to pay certain costs from income of waqf property.?

Notwithstanding anything contained in the waqf deed, every mutawalli may pay from the income of the waqf property any expenses properly incurred by him for the purpose of enabling him to furnish any particulars, documents or copies under section 36 or any accounts under section 46 or any information or documents required by the Board or for the purpose of enabling him to carry out the directions of the Board.

58.

Power of Board to pay dues in case of default by mutawalli.?

(1)

Where a mutawalli refuses to pay or fails to pay any revenue, cess, rates or taxes due to the Government or any local authority, the Board may discharge dues from the Waqf Fund and may recover the amount so paid from the waqf property and may also recover damages not exceeding twelve and a half per cent. of the amount so paid.

(2)

Any sum of money due under sub-section (1) may, on a certificate issued by the Board after giving the mutawalli concerned an opportunity of being heard, be recovered in the same manner as an arrear of land revenue.

59.

Creation of reserve fund.?

For the purpose of making provisions for the payment of rent and of revenue, cess, rates and taxes due to the Government or any local authority, for the discharge of the expenses of the repair of the waqf property and for the preservation of the waqf property, the Board may direct the creation and maintenance, in such manner as it may think fit,

of a reserve fund from the income of a waqf.

60.

Extension of time.?

The Board may, if it is satisfied that it is necessary so to do, extend the time within which any act is required to be done by the mutawalli under this Act.

61.

Penalties.?

(1)

If a mutawalli fails to?

(a)

apply for the registration of a auqaf;

(b)

furnish statements of particulars or accounts or returns as required under this Act;

(c)

supply information or particulars as required by the Board;

(d)

allow inspection of waqf properties, accounts, records or deeds and documents relating thereto;

(e)

deliver possession of any waqf property, if ordered by the Board or Tribunal;

(f)

carry out the directions of the Board;

(g)

discharge any public dues; or

(h)

do any other act which he is lawfully required to do by or under this Act;

he shall, unless he satisfies the court or the Tribunal that there was reasonable cause for his failure, be punishable with fine which may extend to ten thousand rupees for non-compliance of clauses (a) to (d) and in case of non-compliance of clauses (e) to (h), he shall be punishable with imprisonment for a term which may extend to six months and also with fine which may extend to ten thousand rupees.

(2)

Notwithstanding anything contained in sub-section (1), if?

(a)

a mutawalli omits or fails, with a view to concealing the existing of a waqf, to apply for its registration under this Act,?

(i)

in the case of a waqf created before the commencement of this Act, within the period specified therefor in sub-section (8) of section 36;

(ii)

in the case of any waqf created after such commencement, within three months from the date of the creation of the waqf; or

(b)

a mutawalli furnishes any statement, return, or information to the Board, which he knows or has reason to believe to be false, misleading, untrue or incorrect in any material particular,

he shall be punishable with imprisonment for a term which may extend to six months and also with fine which may extend to fifteen thousand rupees.

(3)

No court, shall take cognizance of an offence punishable under this Act save upon complaint made by the Board or an officer duly authorised by the board in this behalf.

(4)

No court inferior to that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try any offence punishable under this Act.

(5)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), the fine imposed under sub-section (1), when realised, shall be credited to the Waqf Fund.

(6)

In every case where offender is convicted after the commencement of this Act, of an offence punishable under sub-section (1) and sentenced to a fine, the court shall also impose such term of imprisonment in default of payment of fine as is authorised by law for such default.

62.

Mutawalli not to spend any money belonging to waqf for self defence.?

No mutawalli shall spend any money out of the funds of the waqf, of which he is the mutawalli, for meeting any costs, charges, or expenses which are or may be, incurred by him, in relation to any suit, appeal or any other proceeding for, or incidental to, his removal from office or for taking any disciplinary action against himself.

63.

Power to appoint mutawallis in certain cases.?

When there is a vacancy in the office of the mutawalli of a waqf and there is no one to be appointed under the terms of the deed of the waqf, or where the right of any person to act as mutawalli is disputed, the board may appoint any person to act as mutawalli for such period and on such conditions as it may think fit.

64.

Removal of mutawalli.?

(1)

Notwithstanding anything contained in any other law or the deed of waqf, the Board may remove a mutawalli from his office if such mutawalli?

(a)

has been convicted more than once of an offence punishable under section 61; or

(b)

has been convicted of any offence of criminal breach of trust or any other offence involving moral turpitude, and such conviction has not been reversed and he has not been granted full pardon with respect to such offence; or

(c)

is of unsound mind or is suffering from other mental or physical defect or infirmity which would render him unfit to perform the functions and discharge the duties of a mutawalli; or

(d)

is an undischarged insolvent; or

(e)

is proved to be addicted to drinking liquor or other spirituous preparations, or is addicted to the taking of any narcotic drugs; or

(f)

is employed as paid legal practitioner on behalf of, or against, the waqf; or

(g)

has failed, without reasonable excuse, to maintain regular accounts for two consecutive years or has failed to submit, in two consecutive years, the yearly statement of accounts, as required by sub-section (2) of section 46; or

(h)

is interested, directly or indirectly, in a subsisting lease in respect of any waqf property, or in any contract made with, or any work being done for, the waqf or is in arrears in respect of any sum due by him to such waqf; or

(i)

continuously neglects his duties or commits any misfeasance, malfeasance, misapplication of funds or breach of trust in relation to the waqf or in respect of any money or other waqf property; or

(j)

wilfully and persistently disobeys the lawful orders made by the Central Government, State Government, Board under any provision of this Act or rule or order made thereunder;

(k)

misappropriates or fraudulently deals with the property of the waqf.

(2)

The removal of a person from the office of the mutawalli shall not affect his personal rights, if any, in respect of the waqf property either as a beneficiary or in any other capacity or his right, if any, as a sajjadanashin.

(3)

No action shall be taken by the Board under sub-section (1), unless it has held an inquiry into the matter in a prescribed manner and the decision has been taken by a majority of not less than two-thirds of the members of the Board.

(4)

A mutawalli who is aggrieved by an order passed under any of the clauses (c) to (i) of sub-section (1), may, within one month from the date of the receipt by him of the order, appeal against the order to the Tribunal and the decision of the Tribunal on such appeal shall be final.

(5)

Where any inquiry under sub-section (3) is proposed, or commenced, against any mutawalli, the Board may, if it is of opinion that it is necessary so to do in the interest of the waqf, by an order suspend such mutawalli until the conclusion of the inquiry:

Provided that no suspension for a period exceeding ten days shall be made except after giving the mutawalli a reasonable opportunity of being heard against the proposed action.

(6)

Where any appeal is filed by the mutawalli to the Tribunal under sub-section (4), the Board may make an application to the Tribunal for the appointment of a receiver to manage the waqf pending the decision of the appeal, and where such an application is made, the Tribunal shall, notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908), appoint a suitable person as receiver to manage the waqf and direct the receiver so appointed to ensure that the customary or religious rights of the mutawalli and of the waqf are safeguarded.

(7)

Where a mutawalli has been removed from his office under sub-section (1), the Board may, by order, direct the mutawalli to deliver possession of the waqf property to the Board or any officer duly authorised in this behalf or to any person or committee appointed to act as the mutawalli of the waqf property.

(8)

A mutawalli of a waqf removed from his office under this section shall not be eligible for re-appointment as a mutawalli of that waqf for a period of five years from the date of such removal.

65.

Assumption of direct management of certain auqaf by the Board.?

(1)

Where no suitable person is available for appointment as a mutawalli of a waqf, or where the Board is satisfied, for reasons to be recorded by it in writing, that the filling up of the vacancy in the office of a mutawalli is prejudicial to the interests of the waqf, the Board may, by notification in the Official Gazette, assume direct management of the waqf for such period or periods, not exceeding five years in the aggregate, as may be specified in the notification.

(2)

The State Government may, on its own motion or on the application of any person interested in the waqf, call for the records of any case for the purpose of satisfying itself as to the correctness, legality or propriety of the notification issued by the Board under sub-section (1) and pass such orders as it may think fit and the orders so made by the State Government shall be final and shall be published in the manner specified in sub-section (1).

(3)

As soon as possible after the close of every financial year, the Board shall send to the State Government a detailed report in regard to every waqf under its direct management, giving therein?

(a)

the details of the income of the waqf for the year immediately preceding the year under report;

(b)

the steps taken to improve the management and income of the waqf;

(c)

the period during which the waqf has been under the direct management of the Board and explaining the reasons as to why it has not been possible to entrust the management of the waqf to the mutawalli or any committee of management during the year; and

(d)

such other matters as may be prescribed.

(4)

The State Government shall examine the report submitted to it under sub-section (3), and after such examination, issue such directions or instructions to the Board as it may think fit and the Board shall comply with such directions or instructions on receipt thereof.

(5)

Notwithstanding anything contained in sub-section (1), the Board shall take over the administration of a waqf, if the waqf Board has evidence before it to prove that management of the waqf has contravened the provisions of this Act.

66.

Powers of appointment and removal of mutawalli when to be exercised by the State Government.?

Whenever a deed of waqf or any decree or order of a court of any scheme of management of any waqf provides that a court or any authority other than a Board may appoint or remove a mutawalli or settle or modify such scheme of management or otherwise exercise superintendence over the waqf, then, notwithstanding anything contained in such deed of waqf, decree, order or scheme, such powers aforesaid shall be exercisable by the State Government:

Provided that where a Board has been established, the State Government shall consult the Board before exercising such powers.

67.

Supervision and supersession of committee of Management.?

(1)

Whenever the supervision or management of a waqf is vested in any committee appointed by the waqf, then, notwithstanding anything contained in this Act, such committee shall continue to function until it is superseded by the Board or until the expiry of its term as may be specified by the waqf, whichever is earlier:

Provided that such committee shall function under the direction, control and supervision of the Board and abide by such directions as the Board may issue from time to time:

Provided further that if the Board is satisfied that any scheme for the management of a waqf by a committee is inconsistent with any provision of this Act or of any rule made thereunder or with the directions of the waqf, it may, at any time, modify the scheme in such manner as may be necessary to bring it in conformity with the directions of the waqf or of the provisions of this Act and the rules made thereunder.

(2)

Notwithstanding anything contained in this Act, and in the deed of the waqf, the Board may, if it is satisfied, for reasons to be recorded in writing, that a committee, referred to in sub-section (1) is not functioning properly and satisfactorily, or that the waqf is being mismanaged and that in the interest of its proper management, it is necessary so to do, by an order, supersede such committee, and, on such supersession, any direction of the waqf, in so far as it relates to the constitution of the committee, shall cease to have any force:

Provided that the Board shall, before making any order superseding any committee, issue a notice setting forth therein the reasons for the proposed action and calling upon the Committee to show cause within such time, not being less than one month, as may be specified in the notice, as to why such action shall not be taken.

(3)

Every order made by the Board under sub-section (2) shall be published in the prescribed manner and on such publication shall be binding on the mutawalli and all persons having any interest in the waqf.

(4)

Any order made by the Board under sub-section (2) shall be final:

Provided that any person aggrieved by the order made under sub-section (2) may, within sixty days from the date of the order, appeal to the Tribunal:

Provided further that the Tribunal shall have no power to suspend the operation of the order made by the Board pending such appeal.

(5)

The Board shall, whenever it supersedes any committee under sub-section (2), constitute a new committee of management simultaneously with the order made by it under sub-section (2).

(6)

Notwithstanding anything contained in the foregoing sub-sections, the Board may, instead of superseding any committee under sub-section (2), remove any member thereof if it is satisfied that such member has abused his position as such member or had knowingly acted in a manner prejudicial to the interests of the waqf, and every such order for the removal of any member shall be served upon him by registered post:

Provided that no order for the removal of the member shall be made unless he has been given a reasonable opportunity of showing cause against the proposed action:

Provided further that any member aggrieved by any order for his removal from the membership of the committee may, within a period of thirty days from the date of service of the order on him, prefer an appeal against such order to the Tribunal and Tribunal may, after giving a reasonable opportunity to the appellant and the Board of being heard, confirm, modify or reverse the order made by the Board and the order made by the Tribunal in such appeal shall be final.

68.

Duty of mutawalli or committee to deliver possession of records, etc.?

(1)

Where any mutawalli or committee of management has been removed by the Board in accordance with provisions of this Act, or of any scheme made by the Board, the mutawalli or the committee so removed from the office (hereinafter in this section referred to as the removed mutawalli or committee) shall hand over charge and deliver possession of the records, accounts and all properties of the waqf (including cash) to the successor mutawalli or the successor committee, within one month from the date specified in the order.

(2)

Where any removed mutawalli or committee fails to deliver charge or deliver possession of the records, accounts and properties (including cash) to the successor mutawalli or committee within the time specified in sub-section (1), or prevents or obstructs such mutawalli or committee, from obtaining possession thereof after expiry of the period aforesaid, the successor mutawalli or any member of the successor committee may make an application, accompanied by a certified copy of the order appointing such successor mutawalli or committee, to any District Magistrate, Additional District Magistrate, Sub-Divisional Magistrate or their equivalent within the local limits of whose jurisdiction any part of the waqf property is situated and, thereupon such District Magistrate, Additional District Magistrate, Sub-Divisional Magistrate or their equivalent may, after giving notice to the removed mutawalli or members of the removed committee, make an order directing the delivery of charge and possession of such records, accounts and properties (including cash) of the waqf to the successor mutawalli or the committee, as the case may be, within such time as may be specified in the order.

(3)

Where the removed mutawalli or any member of the removed committee, omits or fails to deliver charge and possession of the records, accounts and properties (including cash) within the time specified by any Magistrate under sub-section (2) the removed mutawalli or every member of the removed committee, as the case may be, shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to eight thousand rupees, or with both.

(4)

Whenever any removed mutawalli or any member of the removed committee omits or fails to comply with the orders made by any Magistrate under sub-section (2), any Magistrate may authorise the successor mutawalli or committee to take charge and possession of such records, accounts, properties (including cash) and may authorise such person to take such police assistance as may be necessary for the purpose.

(5)

No order of the appointment of the successor mutawalli or committee, shall be called in question in the proceedings before any Magistrate under this section.

(6)

Nothing contained in this section shall bar the institution of any suit in a competent civil court by any person aggrieved by any order made under this section, to establish that he has right, title and interest in the properties specified in the order made by any Magistrate under sub-section (2).

69.

Power of Board to frame scheme for administration of waqf.?

(1)

Where the Board is satisfied after an enquiry, whether on its own motion or on the application of not less than five persons interested in any waqf, to frame a scheme for the proper administration of the waqf, it may, by an order, frame such scheme for the administration of the waqf, after giving reasonable opportunity and after consultation with the mutawalli or others in the prescribed manner.

(2)

A scheme framed under sub-section (1) may provide for the removal of the mutawalli of the waqf holding office as such immediately before the date on which the scheme comes into force:

Provided that where any such scheme provides for the removal of any hereditary mutawalli, the scheme shall also provide for the appointment of the person next in hereditary succession to the mutawalli so removed, as one of the members of the committee appointed for the proper administration of the waqf.

(3)

Every order made under sub-section (2) shall be published in the prescribed manner, and, on such publication shall be final and binding on the mutawalli, and all persons interested in the waqf:

Provided that any person aggrieved by an order made under this section may, within sixty days from the date of the order, prefer an appeal to the Tribunal and after hearing such appeal, the Tribunal may confirm, reverse or modify the order:

Provided further that the Tribunal shall have no power to stay the operation of the order made under this section.

(4)

The Board may, at any time by an order, whether made before or after the scheme has come into force, cancel or modify the scheme.

(5)

Pending the framing of the scheme for the proper administration of the waqf, the Board may appoint a suitable person to perform all or any of the functions of the mutawalli thereof and to exercise the powers, and perform the duties, of such mutawalli.

70.

Inquiry relating to administration of waqf.?

Any person interested in a waqf may make an application to the Board supported by an affidavit to institute an inquiry relating to the administration of the waqf and if the Board is satisfied that there are reasonable grounds for believing that the affairs of the waqf are being mismanaged, it shall take such action thereon as it thinks fit.

71.

Manner of holding inquiry.?

(1)

The Board may, either on an application received under section 70 or on its own motion,?

(a)

hold an inquiry in such manner as may be prescribed; or

(b)

authorise any person in this behalf to hold an inquiry into any matter relating to a waqf and take such action as it thinks fit.

(2)

For the purposes of an inquiry under this section, the Board or any person authorised by it in this behalf, shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (5 of 1908) for enforcing the attendance of witnesses and production of documents.

Chapter VII

Finance of the board

72.

Annual contribution payable to Board.?

(1)

The mutawalli of every waqf, the net annual income of which is not less than five thousand rupees, shall pay annually, out of the net annual income derived by the waqf, such contributions, not exceeding seven per cent. of such annual income, as may be prescribed, to the Board for the services rendered by such Board to the waqf.

Explanation I.?

For the purposes of this Act, "net annual income" shall mean the gross income of the waqf from all sources, including nazars and offerings which do not amount to contributions to the corpus of the auqaf, in a year after deducting therefrom the following, namely:—

- (i)
the land revenue paid by it to the Government;
 - (ii)
the rates, cesses, taxes and licence fees, paid by it to the Government or any local authority;
 - (iii)
expenditure incurred for all or any of the in respect of lands directly under cultivation by the mutawalli for the benefit of the waqf, namely:—
 - (a)
maintenance of, or repairs to, irrigation works, which shall not include the capital cost of irrigation;
 - (b)
seeds or seedlings;
 - (c)
manure;
 - (d)
purchase and maintenance of agricultural implements;
 - (e)
purchase and maintenance of cattle for cultivation;
 - (f)
wages for ploughing, watering, sowing, transplanting, harvesting, threshing and other agricultural operations:
- Provided that the total deduction in respect of an expenditure incurred under this clause shall not exceed twenty per cent. of the income derived from lands belonging to the waqf:

(iv)
Provided further that no such deduction shall be permitted in respect of waqf land given on lease, by whatever name called, whether batai or share cropping or any other name. expenditure on sundry repairs to rented buildings, not exceeding five per cent. of the annual rent derived therefrom, or the actual expenditure, whichever is less;

(v)
sale proceeds of immovable properties or rights relating to, or arising out of immovable properties, if such proceeds are reinvested to earn income for the waqf:

Provided that the following items of receipts shall not be deemed to be income for the purposes of this section, namely:—

- (a)
advances and deposits recovered and loans taken or recovered;
- (b)
deposits made as security by employees, lessees or contractors and other deposits, if any;
- (c)
withdrawals from banks or of investments;
- (d)
amounts recovered towards costs awarded by courts;
- (e)
sale proceeds of religious books and publications where such sales are undertaken as an un-remunerative enterprise with a view to propagating religion;
- (f)
donations in cash or kind or offerings made by the donors as contribution to the corpus of the waqf:
Provided that interest on income, if any, accruing from such donations or offerings shall be taken into account in calculating the gross annual income;
- (g)
voluntary contributions received in cash or kind for a specific service to be performed by the waqf and expended on such service;
- (h)

audit recoveries;

Explanation II.?

In determining the net annual income for the purposes of this section, only the net profit derived by any waqf from its remunerative undertakings, if any, shall be taken as income, and in respect of its non-remunerative undertakings, such as, schools, colleges, hospitals, poor homes, orphanages or any other similar institutions, the grants given by the Government or any local authority or donations received from the public or fees collected from the pupils of educational institutions shall not be taken as income.

(2)

The Board may in the case of any mosque or orphanage or any particular waqf reduce or remit such contribution for such time as it thinks fit.

(3)

The mutawalli of a waqf may realise the contributions payable by him under sub-section (1) from the various persons entitled to received any pecuniary or other material benefit from the waqf, but the sum realisable from any one of such persons shall not exceed such amount as shall bear to the total contribution payable, the same proportion, as the value of the benefits receivable by such person bears to the entire net annual income of the waqf:

Provided that if there is any income of the waqf available in excess of the amount payable as dues under this Act, other than as the contribution under sub-section (1), and in excess of the amount payable under the waqf deed, the contribution shall be paid out of such income.

(4)

The contribution payable under sub-section (1) in respect of a waqf shall, subject to the prior payment of any dues to the Government or any local authority or of any other statutory first charge on the waqf property or the income thereof, be a first charge on the income of the waqf and shall be recoverable, on a certificate issued by the Board after giving the mutawalli concerned an opportunity of being heard, as an arrear of land revenue.

(5)

If a mutawalli realises the income of the waqf and refuses to pay or does not pay such contribution, he shall also be personally liable for such contribution which may be realised from his person or property in the manner aforesaid.

(6)

Where, after the commencement of this Act, the mutawalli of a waqf fails to submit a return of the net annual income of the waqf within the time specified therefor or submits a return which, in the opinion of the Chief Executive Officer is incorrect or false in any material particular, or which does not comply with the provisions of this Act or any rule or order made thereunder, the Chief Executive Officer may assess the net annual income of the waqf to the best of his judgment or revise the net annual income as shown in the return submitted by the mutawalli and the net annual income as so assessed or revised shall be deemed to be the net annual income of the waqf for the purposes of this section:

Provided that no assessment of net annual income or revision of return submitted by mutawalli shall be made except after giving a notice to the mutawalli calling upon him to show cause, within the time specified in the notice, as to why such assessment or revision of the return shall not be made and every such assessment or revision shall be made after considering the reply if any, given by the mutawalli.

(7)

Any mutawalli who is aggrieved by the assessment or revision made by the Chief Executive Officer, under sub-section (6), may prefer an appeal to the Board within thirty days from the date of the receipt of the assessment or revision of return and the Board may, after giving the appellant a reasonable opportunity of being heard, confirm, reverse or modify the assessment or revision or the return and the decision of the Board thereon shall be final.

(8)

If, for any reason, the contribution or any portion thereof leviable under this section has escaped assessment in any year, whether before or after the commencement of this Act, the Chief Executive Officer may, within five years from the last date of the year to which such escaped assessment relates serve upon the mutawalli a notice assessing him with the contribution or portion thereof which had escaped assessment, and demanding payment thereof within thirty days from the date of service of such notice, and the provisions of this Act and the rules made thereunder, shall, as far as may be, apply as if the assessments were made under this Act, in the first instance.

73.

Power of Chief Executive Officer to direct banks or other person to make payments.?

(1)

Notwithstanding anything contained in any other law for the time being in force, the Chief Executive Officer, if he is satisfied that it is necessary and expedient so to do, make an order directing any bank in which, or any person with whom any money belonging to a waqf is deposited, to pay the contribution, leviable under section 72, out of such money, as may be standing to the credit of the waqf in such bank or may be deposited with such person, or out of the moneys which may, from time to time, be received by bank or other person for or on behalf of the waqf by way of deposit, and on receipt of such orders, the bank or the other person, as the case may be, shall, when no appeal has been

preferred under sub-section (3), comply with such orders, or where an appeal has been preferred under sub-section (3), shall comply, with the orders made by the Tribunal on such appeal.

(2)

Every payment made by a bank or other person in pursuance of any order made under sub-section (1), shall operate as a full discharge of the liability of such bank or other person in relation to the sum so paid.

(3)

Any bank or other person who is ordered under sub-section (1) to make any payment may, within thirty days from the date of the order, prefer an appeal against such order to the Tribunal and the decision of the Tribunal on such appeal shall be final.

(4)

Every officer of the bank or other person who fails, without any reasonable excuse, to comply with the order made under sub-section (1) or, as the case may be, under sub-section (3), shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to eight thousand rupees, or with both.

74.

Deduction of contribution from perpetual annuity payable to the waqf.?

(1)

Every authority empowered to disburse any perpetual annuity payable to a waqf under any law relating to the abolition of zamindars or jagirs, or laying down land ceilings, shall, on receipt of a certificate from the Chief Executive Officer, specifying the amount of contribution payable by the waqf under section 72 which remains unpaid, deduct before making payment of the perpetual annuity to the waqf, the amount specified in such certificate and remit the amount so deducted to the Chief Executive Officer.

(2)

Every amount remitted under sub-section (1) to the Chief Executive Officer shall be deemed to be a payment made by the waqf and shall, to the extent of the amount so remitted, operate as a full discharge of the liability of such authority with regard to the payment of the perpetual annuity.

75.

Power of board to borrow.?

(1)

For the purpose of giving effect to the provisions of this Act, the Board may, with the previous sanction of the State Government, borrow such sum of money and on such terms and conditions as the State Government may determine.

(2)

The Board shall repay the money borrowed, together with any interest or costs due in respect thereof, according to the terms and conditions of the loan.

76.

Mutawalli not to lend or borrow moneys without sanction.?

(1)

No mutawalli, Executive Officer or other person in charge of the administration of a waqf shall lend any money belonging to the waqf or any waqf property or borrow any money for the purposes of the waqf except with the previous sanction of the Board:

Provided that no such sanction is necessary if there is an express provision in the deed of waqf for such borrowing or lending, as the case may be.

(2)

The Board may, while according sanction, specify any terms and conditions subject to which the person referred to in

sub-section (1) is authorised by him to lend or borrow any money or lend any other waqf property.

(3)

Where any money is lent or borrowed, or other waqf property is lent in contravention of the provisions of this section, it shall be lawful for the Chief Executive Officer,?

(a)

to recover an amount equal to the amount which has been so lent or borrowed, together with interest due thereon, from the personal funds of the person by whom such amount was lent or borrowed;

(b)

to recover the possession of the waqf property lent in contravention of the provisions of this Act, from the person to whom it was lent, or from persons who claim title to such property through the person to whom such property was lent.

77.

Waqf Fund.?

(1)

All moneys received or realised by the Board under this Act and all other moneys received as donations, benefactions or grants by the Board shall form a fund to be called the Waqf Fund.

(2)

All moneys received by the Board, as donations, benefactions and grants shall be deposited and accounted for under a separate sub-head.

(3)

Subject to any rules that may be made by the State Government in this behalf, the Waqf Fund shall be under the control of the Board, so, however, that the Waqf Fund under the control of common Waqf Board shall be subject to rules, if any, made in this behalf by the Central Government.

(4)

The Waqf Fund shall be applied to?

(a)

repayment of any loan incurred under section 75 and payment of interest thereon;

(b)

payment of the cost of audit of the Waqf Fund and the accounts of auqaf;

(c)

payment of the salary and allowances to the officers and staff of the Board;

(d)

payment of traveling allowances to the Chairperson, members, of the Board;

(e)

payment of all expenses incurred by the Board in the performance of the duties imposed, and the exercise of the powers conferred, by or under this Act;

(f)

payment of all expenses incurred by the Board for the discharge of any obligation imposed on it by or under any law for the time being in force.

(g)

payment of maintenance to Muslim women as ordered by a court of competent jurisdiction under the provisions of the Muslim Women (Protection of Rights on Divorce) Act, 1986 (25 of 1986). (5) If any balance remains after meeting the expenditure referred to in sub-section (4), the Board may use any portion of such balance for the preservation and protection of waqf properties or for such other purposes as it may deem fit.

78.

Budget of Board.?

(1)

The Board shall in every year prepare, in such form and at such time as may be prescribed, a budget for the next financial year showing the estimated receipts and expenditure during that financial year and forward a copy of the same to the State Government.

(2)

On receipt of the budget forwarded to it under sub-section (1), the State Government shall examine the same and

suggest such alterations, corrections or modifications to be made therein as it may think fit and forward such suggestions to the Board for its consideration.

(3)

On receipt of the suggestions from the State Government the Board may make written representations to that Government with regard to the alterations, corrections or modifications suggested by that Government and the State Government shall, after considering such representations, communicate, within a period of three weeks from the date of receipt thereof, to the Board its final decision in relation to the matter and the decision of the State Government shall be final.

(4)

On receipt of the decision of the State Government under sub-section (3), the Board shall incorporate in its budget all the alterations, corrections, modifications finally suggested by the State Government and the budget as so altered, corrected or modified, shall be the budget which shall be passed by the Board.

79.

Accounts of Board.?

The Board shall cause to be maintained such books of account and other books in relation to its accounts in such form and in such manner as may be provided by regulations.

80.

Audit of accounts of Board.?

(1)

The accounts of the Board shall be audited and examined annually by such auditor as may be appointed by the State Government.

(2)

The auditor shall submit his report to the State Government and the report of the auditor shall, among other things, specify whether the accounts of every waqf under the direct management of the Board have been kept separately and whether such accounts have been audited annually by the State Examiner of Local Funds and shall also specify all cases of irregular, illegal or improper expenditure or of failure to recover money or other property caused by neglect or misconduct and any other matter which the auditor considers it necessary to report; and the report shall also contain the name of any person who, in the opinion of the auditor is responsible for such expenditure or failure and the auditor shall in every such case certify the amount of such expenditure or loss as due from such person.

(3)

The cost of the audit shall be paid from the Waqf Fund.

81.

State Government to pass orders on auditor's report.?

The State Government shall examine the auditor's report and may call for the explanation of any person in regard to any matter mentioned therein, and shall pass such orders on the report as it thinks fit and a copy of the said auditor's report, along with orders shall be forwarded by the State Government to the Council within a period of thirty days of laying of such report before each House of the State Legislature where it consists of two Houses or where such Legislatures consist of one House, before that House.

82.

Dues of Board to be recovered as arrears of land revenue.?

(1)

Every sum certified to be due from any person by an auditor in his report under section 80, be paid by such person within sixty days after service of a demand notice by the Board.

(2)

If such payment is not made in accordance with the provisions of sub-section (1), the sum payable may, on a certificate issued by the Board, after giving the person concerned an opportunity of being heard, be recovered as an arrear of land revenue.

Chapter VIII

Judicial proceedings

83.

Constitution of Tribunals, etc.?

(1)

The State Government shall, by notification in the Official Gazette, constitute as many Tribunals as it may think fit, for the determination of any dispute, question or other matter relating to a waqf or waqf property, eviction of a tenant or determination of rights and obligations of the lessor and the lessee of such property, under this Act and define the local limits and jurisdiction of such Tribunals.

(2)

Any mutawalli person interested in a waqf or any other person aggrieved by an order made under this Act, or rules made thereunder, may make an application within the time specified in this Act or where no such time has been specified, within such time as may be prescribed, to the Tribunal for the determination of any dispute, question or other matter relating to the waqf.

(3)

Where any application made under sub-section (1) relates to any waqf property which falls within the territorial limits of the jurisdiction of two or more Tribunals, such application may be made to the Tribunal within the local limits of whose jurisdiction the mutawalli or any one of the mutawallis of the waqf actually and voluntarily resides, carries on business or personally works for gain, and, where any such application is made to the Tribunal aforesaid, the other Tribunal or Tribunals having jurisdiction shall not entertain any application for the determination of such dispute, question or other matter:

Provided that the State Government may, if it is of opinion that it is expedient in the interest of the waqf or any other person interested in the waqf or the waqf property to transfer such application to any other Tribunal having jurisdiction for the determination of the dispute, question or other matter relating to such waqf or waqf property, transfer such application to any other Tribunal having jurisdiction, and, on such transfer, the Tribunal to which the application is so transferred shall deal with the application from the stage which was reached before the Tribunal from which the application has been so transferred, except where the Tribunal is of opinion that it is necessary in the interest of justice to deal with the application afresh.

(4)

Every Tribunal shall consist of?

(a)

one person, who shall be a member of the State Judicial Service holding a rank, not below that of a District, Sessions or Civil Judge, Class I, who shall be the Chairman;

(b)

one person, who shall be an officer from the State Civil Services equivalent in rank to that of the Additional District Magistrate, Member;

(c)

one person having knowledge of Muslim law and jurisprudence, Member; and the appointment of every such person shall be made either by name or by designation.

(4A)

The terms and conditions of appointment including the salaries and allowances payable to the Chairman and other members other than persons appointed as ex officio members shall be such as may be prescribed.

(5)

The Tribunal shall be deemed to be a civil court and shall have the same powers as may be exercised by a civil court under the Code of Civil Procedure, 1908 (5 of 1908), while trying a suit, or executing a decree or order.

(6)

Notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908), the Tribunal shall follow such procedure as may be prescribed.

(7)

The decision of the Tribunal shall be final and binding upon the parties to the application and it shall have the force of a decree made by a civil court.

(8)

The execution of any decision of the Tribunal shall be made by the civil court to which such decision is sent for execution in accordance with the provisions of the Code of Civil Procedure, 1908 (5 of 1908).

(9)

No appeal shall lie against any decision or order whether interim or otherwise, given or made by the Tribunal:

Provided that a High Court may, on its own motion or on the application of the Board or any person aggrieved, call for and examine the records relating to any dispute, question or other matter which has been determined by the Tribunal for the purpose of satisfying itself as to the correctness, legality or propriety of such determination and may confirm, reverse or modify such determination or pass such other order as it may think fit.

84.

Tribunal to hold proceedings expeditiously and to furnish to the parties copies of its decision.?

Whenever an application is made to a Tribunal for the determination of any dispute, question or other matter relating to a waqf or waqf property it shall hold its proceedings as expeditiously as possible and shall as soon as practicable, on the conclusion of the hearing of such matter give its decision in writing and furnish a copy of such decision to each of the parties to the dispute.

85.

Bar of jurisdiction of civil courts.?

No suit or other legal proceeding shall lie in any civil court, revenue court and any other authority in respect of any dispute, question or other matter relating to any waqf, waqf property or other matter which is required by or under this Act to be determined by a Tribunal.

86.

Appointment of a receiver in certain cases.?

Notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908), or in any other law for the time being in force, where any suit or other legal proceeding is instituted or commenced?

(a)

by or on behalf of a Board?

(i)

to set aside the sale of any immovable property, which is waqf property, in execution of a decree or order of a civil court;

(ii)

to set aside the transfer of any immovable property, which is waqf property, made by the mutawalli thereof, whether for valuable consideration or not, without or otherwise than in accordance with, the sanction of the Board;

(iii)

to recover possession of the property referred to in clause (a) or clause (b) or to restore possession of such property to the mutawalli of the concerned waqf; or

(b)

by a mutawalli to recover possession of immovable property, which is waqf property, which has been transferred by a previous mutawalli or by any other person, whether for valuable consideration or not, without otherwise than in accordance with the sanction of the Board, and which is in the possession of the defendant,

the court may, on the application of the plaintiff, appoint a receiver of such property and direct such receiver to pay from time to time to the plaintiff, out of the income of the property, such amount as the court may consider to be necessary for further prosecution of the suit.

87.

Bar to the enforcement of right on behalf of unregistered wakfs. Omitted by the Wakf (Amendment) Act, 2013 (27 of 2013), s. 47 (w.e.f. 1-11-2013).

88.

Bar to challenge the validity of any notification, etc.?

Save as otherwise expressly provided in this Act, no notification or order or decision made, proceeding or action taken, by the Central Government or the State Government under this Act or any rule made thereunder shall be questioned in any Civil Court.

89.

Notice of suits by parties against Board.?

No suit shall be instituted against the Board in respect of any act purporting to be done by it in pursuance of this Act or of any rules made thereunder, until the expiration of two months next after notice in writing has been delivered to, or left at, the office of the Board, stating the cause of action, the name, description and place of residence of the plaintiff and the relief which he claims; and the plaint shall contain a statement that such notice has been so delivered or left.

90.

Notice of suits, etc., by courts.?

(1)

In every suit or proceeding relating to a title to or possession of a waqf property or the right of a mutawalli or beneficiary, the court or Tribunal shall issue notice to the Board at the cost of the party instituting such suit or proceeding.

(2)

Whenever any waqf property is notified for sale in execution of a decree of a civil court or for the recovery of any revenue, cess, rates of taxes due to the Government or any local authority, notice shall be given to the Board by the court, Collector or other person under whose order the sale is notified.

(3)

In the absence of a notice under sub-section (1), any decree or order passed in the suit or proceeding shall be declared void, if the Board, within six month of its coming to know of such suit or proceeding, applies to the court in this behalf.

(4)

In the absence of a notice under sub-section (2), the sale shall be declared void, if the Board, within one month of its coming to know of the sale, applies in this behalf to the court or other authority under whose order the sale was held.

91.

Proceedings under Act 1 of 1894.?

(1)

If, in the course of proceedings under the Land Acquisition Act, 1894 or under any law for the time being in force relating to the acquisition of land or other property, and before an award is made, in case the property under acquisition is waqf property, a notice of such acquisition shall be served by Collector on the Board and further proceedings shall be stayed to enable the Board to appear and plead as a party to the proceeding at any time within three months from the date of the receipt of such notice.

Explanation.?

The reference to the Collector in the foregoing provisions of this sub-section shall, in relation to any other law referred to therein, be construed, if the Collector is not the competent authority under such other law to make an award of the compensation or other amount payable for acquisition of land or other property thereunder, as a reference to the authority under such other law competent to make such award.

(2)

Where the Board has reason to believe that any property under acquisition is waqf property, it may at any time before the award is made appear and plead as a party to the proceeding.

(3)

When the Board has appeared under the provisions of sub-section (1) or sub-section (2), no order shall be passed under section 31 or section 32 of the Land Acquisition Act, 1894 or under the corresponding provisions of the other law referred to in sub-section (1) without giving an opportunity to the Board to be heard.

(4)

Any order passed under section 31 or section 32 of the Land Acquisition Act, 1894 or under the corresponding provisions of the other law referred to in sub-section (1) without giving an opportunity to the Board to be heard, shall be declared void if the Board, within one month of its coming to know of the order, applies in this behalf to the authority which made the order.

92.

Board to be party to suit or proceeding.?

In any suit or proceeding in respect of a waqf or any waqf property the Board may appear and plead as a party to the suit or proceeding.

93.

Bar to compromise of suits by or against mutawallis.?

No suit or proceeding in any court by or against the mutawalli of a waqf relating to title to waqf property or the rights of the mutawalli shall be compromised without the sanction of the Board.

94.

Power to make application to the Tribunal in case of failure of mutawalli to discharge his duties.?

(1)

Where a mutawalli is under an obligation to perform any act which is recognised by Muslim law as pious, religious or charitable and the mutawalli fails to perform such act, the Board may apply to the Tribunal for an order directing the mutawalli to pay to the Board or to any person authorised by the Board in this behalf the amount necessary for the performance of such act.

(2)

Where a mutawalli is under an obligation to discharge any other duties imposed on him under the waqf and the mutawalli wilfully fails to discharge such duties, the Board or any person interested in the waqf may make an application to the Tribunal and the Tribunal may pass such order thereon as it thinks fit.

95.

Power of appellate authority to entertain appeal after expiry of specified period.?

Where, under this Act any period has been specified for the filing of any appeal, the appellate authority may, if it is satisfied that the appellant was prevented by sufficient cause from preferring the appeal within the period so specified, entertain the appeal after the expiry of the said period.

Chapter IX

Miscellaneous

96.

Power of Central Government to regulate secular activities of auqaf.?

(1)

For the purpose of regulating the secular activities of auqaf, the Central Government shall have the following powers and functions, namely:?

(a)

to lay down general principles and policies of waqf administration in so far as they relate to the secular activities of the auqaf;

(b)

to co-ordinate the functions of the Central Waqf Council and the Board, in so far as they relate to their secular functions;

(c)

to review administration of the secular activities of auqaf generally and to suggest improvements, if any.

(2)

In exercising its powers and functions under sub-section (1), the Central Government may call for any periodic or other reports from any Board and may issue to the Board such directions as it may think fit and the Board shall comply with such directions.

Explanation.?

For the purposes of this section ?secular activities? shall include social, economic, educational and other welfare activities.

97.

Directions by State Government.?

Subject to any directions issued by the Central Government under section 96, the State Government may, from time to time, give to the Board such general or special directions as the State Government thinks fit and in the performance of its functions, the Board shall comply with such directions:

Provided that the State Government shall not issue any direction being contrary to any waqf deed or any usage; practice or custom of the waqf.98. Annual report by State Government.?

As soon as may be after the close of a financial year, the State Government shall cause a general annual report on the working and administration of the State Waqf Board and the Administration of auqaf in the State during that year to be prepared and laid before each House of the State Legislature where it consists of two Houses, or where such legislature consists of one House, before that House, and every such report shall be in such form and shall contain such matters as may be provided by regulations.

99.

Power to supersede Board.?

(1)

If the State Government is of opinion that the Board is unable to perform or has persistently made default in the performance of, the duty imposed on it by or under this Act or has exceeded or abused its powers, or has wilfully and

without sufficient cause failed to comply with any direction issued by the Central Government under section 96 or the State Government under section 97, or if the State Government is satisfied on consideration of any report submitted after annual inspection, that the Board's continuance is likely to be injurious to the interests of the auqaf in the State, the State Government may, by notification in the Official Gazette, supersede the Board for a period not exceeding six months:

Provided that before issuing a notification under this sub-section, the State Government shall give a reasonable time to the Board to show cause why it should not be superseded and shall consider the explanations and objections, if any, of the Board:

Provided further that the power of the State Government under this section shall not be exercised unless there is a prima facie evidence of financial irregularity, misconduct or violation of the provisions of this Act.

(2)

Upon the publication of a notification under sub-section (1) superseding the Board,?

(a)

all the members of the Board shall, as from the date of supersession, vacate their offices as such members;

(b)

all the powers and duties which may, by or under the provisions of this Act, be exercised or performed by or on behalf of the Board shall, during the period of supersession, be exercised and performed by such person or persons as the State Government may direct; and

(c)

all properties vested in the Board shall, during the period of supersession vest in the State Government.

(3)

On the expiration of the period of supersession specified in the notification issued under sub-section (1), the State Government may?

(a)

extend the period of supersession by another six months with reasons to be recorded in writing and, the period of continuous supersession shall not exceed more than a year; or (b) reconstitute the Board in the manner provided in section 14.

100.

Protection of action taken in good faith.?

No suit or other legal proceeding shall lie against the board or Chief Executive Officer or Survey Commissioner or any other person duly appointed under this Act in respect of anything which is in good faith done or intended to be done under this Act.

101.

Survey Commissioner, members and officers of the Board, deemed to be public servants.?

(1)

The Survey Commissioner, members of the Board, every officer, every auditor of the Board and every other person duly appointed to discharge any duties imposed on him by this Act or any rule or order made thereunder, shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code (45 of 1860).

(2)

Every mutawalli of a waqf, every member of managing committee, whether constituted by the Board or under any deed of waqf, every Executive Officer and every person holding any office in a waqf shall also be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code (45 of 1860).

102.

Special provision for reorganisation of certain Boards.?

(1)

Where on account of the reorganisation of States under any law providing reorganisation of States, the whole or any part of a State in respect of which a Board was, immediately before the day of such reorganisation, functioning has been transferred on that day to another State and by reason of such transfer, it appears to the Government of a State in any part of which the Board is functioning that the Board should be dissolved or that it should be reconstituted as an Intra-State Board for the whole or any part of that State, the State Government may frame a scheme or such dissolution or such reconstitution, including proposals regarding the transfer of the assets, rights and liabilities of the Board to any

other Board or State Government and the transfer or re-employment of employees of the Board and forward the scheme to the Central Government.

(2)

On receipt of a scheme forwarded to it under sub-section (1), the Central Government may, after consulting the Council and the State Governments concerned, approve the scheme with or without modifications and give effect to the scheme so approved by making such order as it thinks fit.

(3)

An order under sub-section (2) may provide for all or any of the following matters, namely:?

(a)

the dissolution of the Board;

(b)

the reconstitution in any manner whatsoever of the Board including the establishment, where necessary, of a new Board;

(c)

the area in respect of which the reconstituted Board or new Board shall function and operate;

(d)

the transfer, in whole or in part, of the assets, rights and liabilities of the Board (including the rights and liabilities under any contract made by it) to any other Board or State Government and the terms and conditions of such transfer;

(e)

the substitution of any such transferee, for the Board, or the addition of any such transferee, as a party to any legal proceeding to which the Board is a party; and the transfer of any proceeding pending before the Board to any such transferee;

(f)

the transfer or re-employment of any employee of the Board to or by, any such transferee and subject to the provisions of law providing for the reorganisation of the concerned State, the terms and conditions of service applicable to such employees after such transfer or re-employment; and

(g)

such incidental, consequential and supplemental matters as may be necessary to give effect to the approved scheme.

(4)

Where an order is made under this section transferring the assets, rights and liabilities of the Board, then, by virtue of that order, such assets, rights and liabilities of the Board shall vest in, and be the assets, rights and liabilities of, the transferee.

(5)

Every order made under this section shall be published in the Official Gazette.

(6)

Every order made under this section shall be laid before each House of Parliament, as soon as may be, after it is made.

103.

Special provision for establishment of Board for part of a State.?

(1)

Where on account of the territorial changes brought about by any law providing for the reorganisation of any State, this Act is as from the date on which that law comes into force applicable only to any part or parts of a State but has not been brought into force in the remaining part thereof, then notwithstanding anything contained in this Act, it shall be lawful for the Government of the State to establish one or more Boards for such part or parts in which this Act is in force and in such a case any reference in this Act to the word 'State' in relation of a Board shall be construed as a reference to that part of the State for which the Board is established.

(2)

Where any such Board has been established and it appears to the Government of the State, that a Board should be established for the whole of the State, the State Government may, by order notified in the Official Gazette dissolve the Board established for the part of the State or reconstitute and reorganise, such Board or establish a new Board for the whole of the State and thereupon, the assets, rights and liabilities of the Board for the part of the State shall vest in and be the assets, rights and liabilities of the reconstituted Board or the new Board, as the case may be.

104.

Application of Act to properties given or donated by persons not professing Islam for support of certain waqf.?

Notwithstanding anything contained in this Act where any movable or immovable property has been given or donated by any person not professing Islam for the support of a waqf being?

(a)

a mosque, idgah, imambara, dargah, khangah or a maqbara;

(b)

a Muslim graveyard;

(c)

a choultry or a musafirkhana,

then such property shall be deemed to be comprised in that waqf and be dealt in the same manner as the waqf in which it is so comprised.

104A.

Prohibition of sale, gift, exchange, mortgage or transfer of waqf property.?

(1)

Notwithstanding anything contained in this Act or any other law for the time being in force or any waqf deed, no person shall sell, gift, exchange, mortgage or transfer any movable or immovable property which is a waqf property to any other person.(2) Any sale, gift, exchange, mortgage or transfer of property referred to in sub-section (1) shall be void ab initio.

104B.

Restoration of waqf properties in occupation of Government agencies to waqf Board.?

(1)

If any waqf property has been occupied by the Government agencies it shall be returned to the Board or the mutawalli within a period of six months from the date of the order of the Tribunal.

(2)

The Government agency may, if the property is required for a public purpose, make an application for determination of the rent, or as the case may be, the compensation, by the Tribunal at the prevailing market value.

105.

Power of Board and Chief Executive Officer to require copies of documents, etc., to be furnished.?

Notwithstanding anything contained in any law for the time being in force, it shall be lawful for the Board or the Chief Executive Officer to require any person having the custody of any record, register, report or other document relating to a waqf or any immovable property, which is waqf property, to furnish, subject to the payment of necessary costs, copies of, or extracts from, any such record, register, report or document and every person to whom such a requisition is made, shall furnish, as soon as may be practicable, to the Board or Chief Executive Officer, copies or extracts from the required record, register, report or other document.

106.

Powers of Central Government to constitute common Boards.?

(1)

Where the Central Government is satisfied that by reasons of?

(i)

the smallness of the Muslim population in two or more States,

(ii)

the slender resources of the Auqaf in such States, and

(iii)

the disproportion between the number and income of the auqaf and the Muslim population in such States,

it is expedient in the interests of the auqaf in the States and the Muslim population of such States, to have, instead of separate Boards for each of such States, a common Board, it may, after consultation with the Council and the Government of each of the concerned States, establish, by notification in the Official Gazette, a common Board for such States as it may deem fit, and may, by the same or any subsequent notification specify the place at which the principal office of such common Board shall be located.

(2)

Every common Board established under sub-section (1) shall, as far as practicable, consist of the persons specified in

sub-section (1) or, as the case may be, sub-section (7) of section 14.

(3)

Whenever any common Board is established under sub-section (1)?

(a)

all powers vested in the State Government under any deed of waqf or any provision of law for the time being in force relating to auqaf, shall stand transferred to, and vested in, the Central Government and, thereupon, references in such deed of waqf or law to the State Governments shall be construed as references to the Central Government:

Provided that while establishing a common Board for two or more States, the Central Government shall ensure, that at least one representative of each of the concerned States is included as a member of the Board;

(b)

references in this Act to a State shall be construed as references to each of the States for which the common Board has been established;

(c)

the Central Government may, without prejudice to any rule applicable to a Board in a State, may, by notification in the Official Gazette, rules regulating the conduct of business by, and affairs of, the common Board.

(4)

The common Board shall be a body corporate, with objects not confined to one State, having perpetual succession and a common seal with power to acquire and hold property and to transfer any such property, subject to such conditions and restrictions as may be specified by the Central Government, and shall by the said name sue or be sued.

107.

Act 36 of 1963 not to apply for recovery of waqf properties.?

Nothing contained in the Limitation Act, 1963 shall apply to any suit for possession of immovable property comprised in any waqf or for possession of any interest in such property.

108.

Special provision as to evacuee waqf properties.?

The provisions of this Act shall apply, and shall be deemed always to have applied, in relation to any evacuee property within the meaning of clause (f) of section 2 of the Administration of Evacuee Property Act, 1950 (31 of 1950) which immediately before it became such evacuee property within the said meaning was property comprised in any waqf and, in particular any entrustment (whether by transfer of any documents or in any other manner and whether generally or for specified purpose) of any such property to a Board made before the commencement of this Act in pursuance of the instructions of the Custodian under the Administration of Evacuee Property Act, 1950 shall have, and shall be deemed always to have had, notwithstanding anything contained in any other provision of this Act, effect as if such entrustment had operated to?

(a)

vest such property in such Board in the same manner and with the same effect as in a trustee of such property for the purposes of sub-section (1) of section 11 of the Administration of Evacuee of Property Act, 1950 (31 of 1950), with effect from the date of such entrustment, and

(b)

authorise such Board to assume direct management of the waqf concerned for so long as it might deem necessary.

108A.

Act to have overriding effect.?

The provisions of this Act shall have overriding effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or in any instrument having effect by virtue of any law other than this Act.

109.

Power to make rules.?

(1)

The State Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act, other than those of Chapter III.

(2)

In particular, and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:?

- (i)
the qualifications required to be fulfilled by a person to be appointed as a mutawalli under clause (i) of section 3;(ia)
other particulars which the report of the Survey Commissioner may contain under clause (f) of sub-section (3) of section 4;
- (ii)
any other matter under clause (f) of sub-section (4) of section 4;
- (iii)
the particulars which a list of Auqaf published under sub-section (2) of section 5, may contain;
- (iv)
the manner of election of members of the Board by means of a single transferable vote, under sub-section (1) of sub-section (2) of section 14;
- (v)
the terms and conditions of service of the Chief Executive Officer under sub-section (2) of section 23;
- (vi)
the conditions and restrictions subject to which the Chief Executive Officer or any other officer may inspect any public office, records or registers under section 29;
- (via)
the period within which the mutawalli or any other person may produce documents related to waqf properties under sub-section (2) of section 31;(vib) the conditions under which an agency of the Government or any other organisation may supply copies of records, registers and other documents under sub-section (3) of section 31;
- (vii)
the conditions subject to which an Executive Officer and supporting staff may be appointed under sub-section (1) of section 38;
- (viii)
the manner in which an inquiry may be held by the Chief Executive Officer under sub-section (1) of section 39;
- (ix)
the form in which, and the time within which, a separate budget for Auqaf under the direct management of the Board shall be prepared under sub-section (1) of section 45;
- (x)
the interval at which accounts of Auqaf may be audited in pursuance of the provisions of sub-section (1) of section 47;
* * * *
- (xii)
the guidance subject to which the Collector shall recover the property transferred in contravention of the provisions of this Act, under section 52;
- (xiii)
the manner of service of notice issued under sub-section (1) of section 54 and the manner in which any inquiry is to be made under sub-section (3) of that section;
- (xiv)
the manner in which any inquiry may be held under section 64 or section 71;
- (xv)
the other matters which may be specified in the report submitted under sub-section (3) of section 65;
- (xvi)
the manner of publication of order made under sub-section (2) of section 67;
- (xvii)
the manner in which consultation may be made with mutawalli under sub-section (1) of section 69;
- (xviii)
the manner of publication of order made under sub-section (3) of section 69;
- (xix)
the rate at which contribution is to be made by a mutawalli under section 72;
- (xx)
the payment of moneys into the Waqf Fund, the investment, the custody and disbursement of such moneys under

section 77;

(xxi)

the form in which, and the time within which, the budget of the Board may be prepared and submitted under section 78;

(xxii)

the time within which application is to be made to the Tribunal under sub-section (2) of section 83;

(xxiii)

(xxiia)

the terms and conditions of appointment including the salaries and allowances payable to the Chairman and other members other than persons appointed as ex officio members under sub-section (4A) of section 83; the procedure which the Tribunal shall follow under sub-section (6) of section 83;

(xxiv)

the form in which the annual report is to be submitted and the matters which such report shall contain under section 98; and

(xxv)

any other matter which is required to be, or may be, prescribed.

110.

Powers to make regulations by the Board.?

(1)

The Board may, with previous sanction of the State Government, make regulations not inconsistent with this Act or the rules made thereunder, for carrying out its functions under this Act.

(2)

In particular, and without prejudice to the generality of the foregoing powers, such regulations may provide for all or any of the following matters, namely?

(a)

the time and places of the meetings of the Board under sub-section (1) of section 17;

(b)

the procedure and conduct of business at the meetings of the Board;

(c)

the constitution and functions of the committees and the Board and the procedure for transaction of business at the meetings of such committees;

(d)

the allowances or fees to be paid to the Chairperson or members of the Board or members of committees;

(e)

the terms and conditions of service of the officers and other employees of the Board under sub-section (2) of section 24;

(f)

the forms of application for registration of Auqaf further particulars to be contained therein and the manner and place of registration of Auqaf under sub-section (3) of section 36;

(g)

further particulars to be contained in the register of Auqaf under Section 37;

(h)

the form in which, and the time within which, the budgets of Auqaf may be prepared and submitted by the Mutawalli and approved by the Board under sub-section (1) of section 44;

(i)

the books of accounts and other books to be maintained by the Board under section 79;

(j)

fees payable for inspection of proceedings and records of the Board or for issue of copies of the same;

(k)

persons by whom any order or decision of the Board may be authenticated; and

(l)

any other matter which has to be, or may be, provided by regulations.

(3)

All regulations made under this section shall be published in the Official Gazette and shall have effect from the date of such publication.

111.

Laying of rules and regulations before State Legislature.?

Every rule made under section 109 and every regulation made under section 110 shall be laid, as soon as may be after it is made, before the State Legislature.

112.

Repeal and savings.?

(1)

The Wakf Act, 1954 (29 of 1954) and the Wakf (Amendment) Act, 1984 (69 of 1984) are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Acts shall be deemed to have been done or taken under the corresponding provisions of this Act.

(3)

If, immediately before the commencement of this Act, in any State, there is in force in that State, any law which corresponds to this Act that corresponding law shall stand repealed:

Provided that such repeal shall not affect the previous operation of that corresponding law, and subject thereto, anything done or any action taken in the exercise of any power conferred by or under the corresponding law shall be deemed to have been done or taken in the exercise of the powers conferred by or under this Act as if this Act was in force on the day on which such things were done or action was taken.

113.

Power to remove difficulties.?

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order, not inconsistent with the provisions of this Act, remove the difficulty:

Provided that no such order shall be made after the expiry of the period of two years from the commencement of this Act.

(2)

However, order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

Related AI tags, queries and research notes

Translation